CHICAGO TITLE INSURANCE COMPANY

LOAN **POLICY** (2006)

SCHEDULE **A**

DATE OF POLICY:
KEQ ROOICY Date

POLICY NUMBER: 1401-008392913 - **D2**

Date of Recading

AMOUNT OF **INSURANCE**: $8,490,000.00

LOAN NUMBER:

YOUR LOAN **REFERENCE**: EC2C

1.
NAME OF INSURED:

AMALGAMATED BANK OF CHICAGO, AS TRUSTEE

THE ESTATE OR INTEREST IN THE LAND THAT IS ENCUMBERED BY THE INSURED **MORTGAGE** IS: FEE **SIMPLE**, **UNLESS OTHERWISE NOTED**.

3.
TITLE IS VESTED **IN:**

SOCIETY OF THE DIVINE WORD-

CORPORATION ILLINOIS

PRO

COMPANY.

FINDING: NORTH SHORE ICE ARENA, LLC, AN ILLINOIS LIMITED LIABILITY

4.

THE INSURED MORTGAGE, AND **ITS ASSIGNMENTS, IF ANY,** ARE DESCRIBED AS **FOLLOWS**: LEASEHOLD MORTGAGE, ASSIGNMENT OF LEASES AND RENTS, SECURITY AGREEMENT, AND FIXTURE FILING DATED JANUARY 1, 2008 AND RECORDED AS DOCUMENT MADE BY NORTH SHORE ICE

TO AMALGAMATED BANK OF CHICAGO,

ARENA, LLC, AN ILLINOIS LIMITED LIABILITY COMPANY

AS TRUSTEE TO SECURE A NOTE FOR $8,490,000.00.

5.

THE **LAND REFERRED TO IN THIS POLICY IS DESCRIBED AS FOLLOWS**:

THE ESTATE OR INTEREST IN THE LAND DESCRIBED BELOW AND COVERED HEREIN IS: THE LEASEHOLD ESTATE (SAID LEASEHOLD ESTATE BEING DEFINED IN PARAGRAPH 1.C. OF THE ALTA LEASEHOLD ENDORSEMENT(S) ATTACHED HERETO), CREATED BY THE INSTRUMENT HEREIN REFERRED TO AS THE GROUND LEASE, EXECUTED BY: CHICAGO TITLE LAND TRUST COMPANY, AS TRUSTEE UNDER TRUST AGREEMENT DATED DECEMBER 1, 2007 AND KNOWN AS TRUST NUMBER 1114334, AS LESSOR, AND NORTH SHORE ICE ARENA, LLC AN ILLINOIS LIMITED LIABILITY COMPANY, AS LESSEE, DATED DECEMBER 1, 2007, A SHORT FORM AND MEMORANDUM OF GROUND LEASE WAS RECORDED AS DOCUMENT ~, WHICH GROUND LEASE DEMISES THE FOLLOWING DESCRIBED LAND FOR A TERM OF YEARS BEGINNING JANUARY 28, 2008 AND ENDING AUGUST 31,

2068.

PARCEL 1:

THAT PART OF LOT EC-2 IN TECHNY PARCELS EC-1 AND EC-2, BEING A SUBDIVISION OF PART OF THE WEST HALF OF SECTION 14, AND PART OF THE SOUTHEAST QUARTER OF SECTION 15, ALL IN TOWNSHIP 42 NORTH, RANGE 12, EAST OF THE THIRD PRINCIPAL MERIDIAN, ACCORDING TO THE PLAT THEREOF RECORDED FERUARY 27, 2004 AS DOCUMENT NUMBER 0405844049, DESCRIBED AS FOLLOWS: COMMENCING AT THE SOUTHWEST CORNER OF SAID LOT EC-2; THENCE NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING FIVE COURSES AND DISTANCES : (1) NORTH 41 DEGREES 07 MINUTES 39 SECONDS WEST, 115.77 FEET; (2) NORTH 89 DEGREES 55 MINUTES 05 SECONDS WEST, 211.02 FEET; (3) NORTH 26 DEGREES 54 MINUTES 49 SECONDS WEST, 102.88 FEET; (4) NORTH 37 DEGREES 42 MINUTES 01 SECONDS EAST, 173.60 FEET (5) THENCE NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 687.48 FEET FOR THE PLACE OF BEGINNING; THENCE CONTINUING NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLWOING THREE COURSES AND DISTANCES : (1) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 36.58 FEET; (2) NORTH 42 DEGREES 59 MINUTES 46 SECONDS WEST, 402.42 FEET; (3) THENCE NORTH 81 DEGREES 38 MINUTES 35 SECONDS WEST, 102.67 FEET; THENCE NORTH 56 DEGREES 07 MINUTES 43 SECONDS EAST, 594.75 FEET TO THE EASTERLY LINE. OF SAID LOT EC-2, SAID LINE ALSO BEING THE WESTERLY LINE OF HERETOFORE DEDICATED FOUNDERS DRIVE; THENCE SOUTHERLY ALONG THE EASTERLY LINE OF SAID LOT EC-2 THE FOLLOWING TWO COURSES AND DISTANCES (1) ALONG AN ARC OF A CURVE CONCAVE TO THE EAST AND NONTANGENT TO THE LAST DESCRIBED LINE, HAVING A RADIUS OF 780.00 FEET, HAVING A CHORD BEARING OF SOUTH 22 DEGREES 31 MINUTES 41 SECONDS EAST, 401.93 FEET TO A POINT OF REVERSE CURVATURE; (2) THENCE ALONG AN ARC OF A CURVE CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 2540.00 FEET HAVING A CHORD BEARING OF SOUTH 36 DEGREES 00 MINUTES 59 SECONDS EAST, 112.94 FEET; THENCE SOUTH 56 DEGREES 07 MINUTES 43 SECONDS WEST ALONG A LINE NONTANGENT TO THE LAST DESCRIBED CURVE, 385.88 FEET TO THE PLACE OF BEGINNING, IN COOK COUNTY, ILLINOIS

CHICAGO TITLE INSURANCE COMPANY

LOAN **POLICY** (2006)

SCHEDULE B-PARTI

EXCEPTIONS FROM COVERAGE

POLICY NUMBER: 1401 - **008392913 - D2**

EXCEPT AS PROVIDED IN SCHEDULE B - PART II, THIS POLICY DOES NOT INSURE AGAINST LOSS OR DAMAGE (AND THE COMPANY WILL NOT PAY COSTS, ATTORNEYS' FEES OR EXPENSES) THAT ARISE BY REASON OF:

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1.

1.

TAXES FOR THE YEAR(S) 2007 AND 2008

2007 AND 2008 TAXES ARE NOT YET DUE OR PAYABLE.

PCL

PERM TAX# YEAR 1ST INST STAT

04-14-305-001-0000 1 OF 1 2006 NOT BILLED 2ND INST

NOT BILLED STAT

THIS TAX NUMBER AFFECTS PARCEL IN QUESTION AND OTHER PROPERTY.

* * * * * *

PERM TAX#

3A

04-14-305-001-0000

PCL 1 OF 1

VOLUME 00

THE GENERAL TAXES AS SHOWN BELOW ARE MARKED EXEMPT ON THE

COLLECTOR'S WARRANTS.

YEAR (9): 2005 AND PRIOR

UNLESS SATISFACTORY EVIDENCE IS SUBMITTED TO SUBSTANTIATE SAID EXEMPTION OUR POLICY, IF

AND WHEN ISSUED, WILL BE SUBJECT TO SAID TAXES.

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2. ORDINANCE ESTABLISHING PROPERTY SHARES FOR INDIRECT BENEFITS PROVIDED BY THE LEE-GRANT WATER FEEDER MAIN ORDINANCE NUMBER 80-35 RECORDED SEPTEMBER 17, 1980 AS DOCUMENT 25587903.

3. ANNEXATION AGREEMENT DATED DECEMBER 15, 1988 AND RECORDED DECEMBER 16, 1988 AS DOCUMENT 88581079 MADE BY AND BETWEEN SOCIETY OF THE DIVINE WORD, A NOT-FOR-PROFIT CORPORATION ILLINOIS AND VILLAGE OF NORTHBROOK.

FIRST AMENDMENT RECORDED MARCH 27, 1991 AS DOCUMENT 91137573. SECOND AMENDMENT RECORDED NOVEMBER 10, 1993 AS DOCUMENT 93916442. THIRD AMENDMENT RECORDED NOVEMBER 12, 1999 AS DOCUMENT NUMBER 09067534. FOURTH AMENDMENT RECORDED MAY 31, 2005 AS DOCUMENT NUMBER 0515103085. FIFTH AMENDMENT RECORDED AUGUST 18, 2005 AS DOCUMENT NUMBER 0523032093. SIXTH AMENDMENT RECORDED MARCH 8, 2006 AS DOCUMENT NUMBER 0606718036. SEVENTH AMENDMENT RECORDED DECEMBER 15, 2006 0634939087.

4. EASEMENT IN FAVOR OF THE VILLAGE OF NORTHBROOK, AND ITS/THEIR RESPECTIVE SUCCESSORS AND ASSIGNS, TO INSTALL, OPERATE AND MAINTAIN ALL EQUIPMENT NECESSARY FOR THE PURPOSE OF SERVING THE LAND AND OTHER PROPERTY, TOGETHER WITH THE RIGHT OF ACCESS TO SAID EQUIPMENT, AND THE PROVISIONS RELATING

CHICAGO TITLE INSURANCE COMPANY

LOAN POLICY (2006)

SCHEDULE B-PARTI (CONTINUED)

POLICY NUMBER: **1401 - 008392913 -** D2

THERETO CONTAINED IN THE PLAT RECORDED/FILED AS DOCUMENT NO. 0405844049, AFFECTING THE LAND AS FOLLOWS:

A 25 FOOT STRIP AFFECTING THE EAST AND NORTHEAST PORTION OF LOT EC-2;

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5. PORTIONS OF THE PROPERTY LIE WITHIN THE LIMITS OF THE FLOOD HAZARD AREA, AS DISCLOSED BY FINAL PLAT OF SUBDIVISION OF TECHNY PARCELS EC-1 AND EC-2 RECORDED AS DOCUMENT NUMBER 0405844049.

6. DECLARATION ESTABLISHING COVENANTS, CONDITIONS, RESTRICTIONS, EASEMENTS AND RIGHTS FOR REAL ESTATE PARCELS NC-1, EC-1, EC-2, AND SE-1 WITHIN THE TECHNY PROPERTY, NORTHBROOK, ILLINOIS AND PROVIDING FOR THE TECHNY PROPERTY ASSOCIATION RECORDED NOVEMBER 12, 1999 AS DOCUMENT NUMBER 09067537. AMENDED AND RESTATED DECLARATION ESTABLISHING COVENANTS, CONDITIONS, RESTRICTIONS, EASEMENTS AND RIGHTS FOR REAL ESTATE PARCELS NC-1, EC-1, EC-2, AND SE-1 WITHIN THE TECHNY PROPERTY, NORTHBROOK, ILLINOIS AND PROVIDING FOR THE TECHNY PROPERTY ASSOCIATION RECORDED SEPTEMBER 19,2005 AS DOCUMENT NUMBER 0526227126.

7. THE DEVELOPER HAS RESERVED THE RIGHT TO ADD PROPERTY DEFINED AS PARCEL W-2....
TO THE DELCARATION ESTABLISHING COVENANTS, CONDITIONS, RESTRICTIONS, EASEMENTS AND RIGHTS FOR REAL ESTATE PARCELS NC-1, EC-1, EC-2 AND SE-1 WITHIN TECHNY PROPERTY, NORTHBOOK ILLINOIS, AND PROVIDING FOR THE TECHNY PROPERTY ASSOCIATION RECORDED NOVEMBER 12, 1999 AS DOCUMENT NUMBER 09067537, AND IN THE EVENT OF SUCH ADDITION, TO REALLOCATE PERCENTAGE INTERESTS IN THE COMMON ELEMENTS.

8. PERMANENT AND PERPETUAL EASEMENT IS HEREBY GRANTED TO THE VILLAGE OF NORTHBROOK, ITS SUCCESSORS AND ASSIGNS, TO TEST, INSPECT, REPAIR, REPLACE, ALTER, REMOVE OR ABANDON IN PLACE WATER MAIN, STORM SEWER, SANITARY SEWER, PUBLIC SIDEWALK, STREET LIGHTING AND DRAINAGE, UPON, UNDER, ALONG AND ACROSS THE AREA DESIGNATED "VILLAGE UTILITY EASEMENT, PUBLIC UTILITIES EASEMENT ON THE SUBDIVISION, ALSO GRANTED HEREWITH IS THE RIGHT TO CUT, TRIM OR REMOVE TREES, BUSHES ETC. AS SHOWN ON PLAT OF FINAL PLAT OF SUBDIVISION OF TECHNY PARCELS EC-1 AND EC-2 RECORDED AS DOCUMENT 0405844049.

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9. TERMS AND PROVISIONS OF SUBDIVISION AND DEVELOPMENT AGREEMENT BY, BETWEEN AND AMONG THE VILLAGE OF NORTHBROOK AND SOCIETY OF THE DIVINE WORD (TECHNY REAL ESTATE PARCELS EC-1 AND EC-2) DATED JANUARY 13, 2004 AND RECORDED FEBRUARY 27, 2004 AS DOCUMENT NUMBER 0405844048.

10. TERMS, PROVISIONS AND CONDITIONS CONTAINED IN THE TRANSPORTATION FACILITY AND PROGRAMS AGREEMENT RECORDED JULY 7, 1989 AS DOCUMENT NUMBER 89309243, MADE BY AND AMONG THE VILLAGE OF NORTHBROOK AND SOCIETY OF THE DIVINE WORD AND RUBLOFF INC.

FIRST AMENDED AND RESTATED TRANSPORTATION FACILITIES AND PROGRAMS AGREEMENT DATED JULY 13, 1999 AND RECORDED NOVEMBER 12, 1999 AS DOCUMENT NUMBER 09067536.

11. SECURITY INTEREST OF AMALGAMATED BANK OF CHICAGO, AS TRUSTEE, SECURED PARTY, IN CERTAIN DESCRIBED CHATTELS ON THE LAND, AS DISCLOSED BY FINANCING STATEMENT NAMING NORTH SHORE ICE ARENA, LLC AS DEBTOR AND RECORDED

DOCUMENT NO.

AS

LPB1C06 11/06 DGG

12:29:49

CHICAGO TITLE INSURANCE COMPANY

POLICY SIGNATURE PAGE

POLICY NUMBER: 1401-008392913 - D2

THIS POLICY SHALL NOT BE VALID OR BINDING UNTIL SIGNED BY AN AUTHORIZED SIGNATORY.

CHICAGO **TITLE INSURANCE COMPANY**

BY

Alla

AUTHORIZED SIGNATORY

MM2

01/24/08

12:29:50

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

LOCATION ENDORSEMENT 5 **SURVEY**

THE COMPANY HEREBY INSURES THE INSURED AGAINST LOSS OR DAMAGE WHICH THE INSURED SHALL SUSTAIN IN THE EVENT THAT :

THE PLAT OF SURVEY MADE BY V3 ENGINEERS, NUMBER 8904EC2.NSTA, DATED OCTOBER 25, 2007, DOES NOT ACCURATELY DEPICT THE LOCATIONS OF THE EXTERIOR BOUNDARIES OF THE LAND DESCRIBED IN SCHEDULE A, DOES NOT SHOW THE PROPER DIMENSIONS OF SAID BOUNDARIES, AND DOES NOT CORRECTLY REFLECT THE ABSENCE AS OF THE DATE OF SAID SURVEY OF ANY ENCROACHMENTS OR EASEMENTS NOT OTHERWISE EXPRESSLY SET FORTH IN SCHEDULE B.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

ENDIPG

MM2

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER:

1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

LOCATION ENDORSEMENT 6 CONTIGUITY TO STREET

THE COMPANY HEREBY INSURES THE INSURED AGAINST LOSS OR DAMAGE WHICH THE INSURED SHALL SUSTAIN IN THE EVENT THAT, AT DATE OF POLICY:

THE LAND DESCRIBED IN SCHEDULE A IS NOT CONTIGUOUS TO A PHYSICALLY OPEN AND PUBLICALLY DEDICATED STREET KNOWN AS FOUNDERS DRIVE.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, **NOR** DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

ENDIPG

MM2

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO **TITLE INSURANCE COMPANY**

UTILITY FACILITY ENDORSEMENT

THE COMPANY HEREBY INSURES THE INSURED AGAINST LOSS OR DAMAGE WHICH SAID INSURED SHALL SUSTAIN BY REASON OF ANY

INACCURACIES IN THE FOLLOWING ASSURANCE:

1. WATER, GAS, ELECTRIC, TELEPHONE, STORM SEWER AND SANITARY SEWER SERVICES ARE AVAILABLE TO THE LAND DESCRIBED IN SCHEDULE A EITHER OVER, UNDER OR UPON PUBLIC RIGHTS OF WAY DIRECTLY ADJACENT TO SAID LAND OR OVER, UNDER OR UPON AN EASEMENT (NOT TERMINABLE BY THE GRANTOR THEREOF OR BY HIS HEIRS, PERSONAL REPRESENTATIVES, SUCCESSORS OR ASSIGNS) FOR THE BENEFIT OF SAID LAND THAT CONNECTS TO PUBLIC RIGHTS OF WAY.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

ENDIPG

MM2

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

ALTA ENDORSEMENT FORM 3-06

1.
THE COMPANY INSURES AGAINST LOSS OR DAMAGE SUSTAINED BY THE INSURED IN THE EVENT THAT, AT DATE OF POLICY,

2.
A.

B.
ACCORDING TO APPLICABLE ZONING ORDINANCES AND AMENDMENTS, THE LAND IS NOT CLASSIFIED ZONE TECHNY OVERLAY DISTRICT 0-4;

THE FOLLOWING USE OR USES ARE NOT ALLOWED UNDER THAT CLASSIFICATION:

MEMBERSHIP SPORTS AND RECREATION CLUBS, AND INCLUDING ANY AND ALL OTHER USES PERMITTED PURSUANT TO APPLICABLE ZONING ORDINANCES AND AMENDMENTS

THERETO.

THERE SHALL BE NO LIABILITY UNDER THIS ENDORSEMENT BASED ON

A.

B.
LACK OF COMPLIANCE WITH ANY CONDITIONS, RESTRICTIONS, OR REQUIREMENTS CONTAINED IN THE ZONING ORDINANCES AND AMENDMENTS, INCLUDING BUT NOT LIMITED TO THE FAILURE TO SECURE NECESSARY CONSENTS OR AUTHORIZATIONS AS A PREREQUISITE TO THE USE OR USES. THIS PARAGRAPH 2.A. DOES NOT MODIFY OR LIMIT THE COVERAGE PROVIDED IN COVERED RISK 5.

THE INVALIDITY OF THE ZONING ORDINANCES AND AMENDMENTS UNTIL AFTER A FINAL DECREE OF A COURT OF COMPETENT JURISDICTION ADJUDICATING THE INVALIDITY, THE EFFECT OF WHICH IS TO PROHIBIT THE USE OR USES.

THIS ENDORSEMENT IS ISSUED AS PART OF THE POLICY. EXCEPT AS IT EXPRESSLY STATES, IT DOES NOT (I) MODIFY ANY OF THE TERMS AND PROVISIONS OF THE POLICY, (II) MODIFY ANY PRIOR ENDORSEMENTS, (III) EXTEND THE DATE OF POLICY, OR (IV) INCREASE THE AMOUNT OF INSURANCE. TO THE EXTENT A PROVISION OF THE POLICY OR A PREVIOUS ENDORSEMENT IS INCONSISTENT WITH AN EXPRESS PROVISION OF THIS ENDORSEMENT, THIS ENDORSEMENT CONTROLS. OTHERWISE, THIS

ENDORSEMENT IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS OF THE POLICY AND OF ANY PRIOR ENDORSEMENTS.

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ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

P.I.N. ENDORSEMENT 2

THE COMPANY HEREBY INSURES THE INSURED AGAINST LOSS OR DAMAGE WHICH THE INSURED SHALL SUSTAIN IN THE EVENT THAT, AT DATE OF POLICY:

(1) THE LAND DESCRIBED IN SCHEDULE A DOES NOT CONSTITUTE A PORTION OF A SINGLE PARCEL FOR REAL ESTATE TAX PURPOSES; AND

(2) THE LAND DESCRIBED IN SCHEDULE A, TOGETHER WITH OTHER LAND NOT INSURED HEREIN, IS NOT ASSESSED FOR REAL ESTATE TAX PURPOSES UNDER THE FOLLOWING PERMANENT INDEX NUMBER: 04-14-305-001-0000.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT

THEREOF.

ENDIPG

MM2

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

SUBDIVISION ENDORSEMENT

THE COMPANY HEREBY INSURES THE INSURED AGAINST LOSS OR DAMAGE WHICH THE INSURED SHALL SUSTAIN BY REASON OF ANY INACCURACY IN THE FOLLOWING ASSURANCE:

THAT THE LEGAL DESCIPTION OF THE LAND INSURED HEREUNDER IS THAT OF A LOT IN A SUBDIVISION WHICH WAS VALIDLY CREATED **IN** CONFORMANCE WITH THE STATUTES OF THE STATE OF ILLINOIS, AND THAT ANY SUBSEQUENT CONVEYANCE OF THE LAND WILL NOT REQUIRE FURTHER SUBDIVISION OF THE LAND.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

ENDIPG

MM2

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF
POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO **TITLE INSURANCE COMPANY**

ALTA ENDORSEMENT FORM 13.1-06

1. AS USED IN THIS ENDORSEMENT, THESE TERMS SHALL MEAN THE FOLLOWING:

A. "EVICTED" OR "EVICTION": (A) THE LAWFUL DEPRIVATION, IN WHOLE OR IN

2. PART, OF THE RIGHT OF POSSESSION INSURED BY THIS POLICY, CONTRARY TO THE TERMS OF THE LEASE OR (B) THE LAWFUL PREVENTION OF THE USE OF THE LAND OR THE TENANT LEASEHOLD IMPROVEMENTS FOR THE PURPOSES PERMITTED BY THE LEASE, IN EITHER CASE, AS A RESULT OF A MATTER COVERED BY THIS POLICY.

B. "LEASE": THE LEASE AGREEMENT DESCRIBED IN SCHEDULE A.

C. "LEASEHOLD ESTATE": THE RIGHT OF POSSESSION FOR THE LEASE TERM.

D. "LEASE TERM": THE DURATION OF THE LEASEHOLD ESTATE, INCLUDING ANY RENEWAL OR EXTENDED TERM IF A VALID OPTION TO RENEW OR EXTEND IS CONTAINED IN THE LEASE.

E. "PERSONAL PROPERTY": CHATTELS LOCATED ON THE LAND AND PROPERTY THAT, BECAUSE OF THEIR CHARACTER AND MANNER OF AFFIXATION TO THE LAND, CAN BE SEVERED FROM THE LAND WITHOUT CAUSING APPRECIABLE DAMAGE TO THEMSELVES OR TO THE LAND TO WHICH THEY ARE AFFIXED.

E.

G.

H.

"REMAINING LEASE TERM": THE PORTION OF THE LEASE TERM REMAINING AFTER THE INSURED HAS BEEN EVICTED AS A RESULT OF A MATTER COVERED BY THIS POLICY.

"TENANT": THE TENANT UNDER THE LEASE AND, AFTER ACQUISITION OF ALL OR ANY PART OF THE TITLE IN ACCORDANCE WITH THE PROVISIONS OF SECTION 2 OF THE CONDITIONS OF THIS POLICY, THE INSURED CLAIMANT.

"TENANT LEASEHOLD IMPROVEMENTS": THOSE IMPROVEMENTS, INCLUDING LANDSCAPING, REQUIRED OR PERMITTED TO BE BUILT ON THE LAND BY THE LEASE THAT HAVE BEEN BUILT AT THE INSURED'S EXPENSE OR IN WHICH THE INSURED HAS AN INTEREST GREATER THAN THE RIGHT TO POSSESSION DURING THE LEASE TERM.

VALUATION OF ESTATE OR INTEREST INSURED

IF IN COMPUTING LOSS OR DAMAGE IT BECOMES NECESSARY TO VALUE THE TITLE AS THE RESULT OF A COVERED MATTER THAT RESULTS IN AN EVICTION OF THE TENANT, THEN THAT VALUE SHALL CONSIST OF THE VALUE FOR THE REMAINING LEASE TERM OF THE LEASEHOLD ESTATE AND ANY TENANT LEASEHOLD IMPROVEMENTS EXISTING ON THE DATE OF THE EVICTION. THE INSURED CLAIMANT SHALL HAVE THE RIGHT TO HAVE THE LEASEHOLD ESTATE AND THE TENANT LEASEHOLD IMPROVEMENTS VALUED EITHER AS A WHOLE OR SEPARATELY. IN EITHER EVENT, THIS DETERMINATION OF VALUE SHALL TAKE INTO ACCOUNT RENT NO LONGER

(CONTINUED)

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO **TITLE INSURANCE COMPANY**

REQUIRED TO BE **PAID FOR THE REMAINING LEASE TERM.**

3.

ADDITIONAL ITEMS OF LOSS **COVERED BY** THIS **ENDORSEMENT**

IF THE INSURED ACQUIRES ALL OR ANY PART OF THE TITLE IN ACCORDANCE WITH THE PROVISIONS OF **SECTION 2 OF THE CONDITIONS OF THIS POLICY AND** THEREAFTER **IS EVICTED, THE** FOLLOWING **ITEMS OF LOSS, IF APPLICABLE, SHALL** BE **INCLUDED IN COMPUTING LOSS OR DAMAGE INCURRED BY** THE **INSURED, BUT NOT TO** THE **EXTENT THAT THE SAME ARE INCLUDED IN** THE **VALUATION** OF THE **TITLE.**

A.

B.

C.

D.

E.

T.

G.

THE REASONABLE COST OF REMOVING AND RELOCATING ANY PERSONAL PROPERTY THAT THE INSURED HAS THE RIGHT TO REMOVE AND

RELOCATE, SITUATED ON THE LAND AT THE TIME OF EVICTION, THE COST OF TRANSPORTATION OF THAT PERSONAL PROPERTY FOR THE INITIAL ONE HUNDRED MILES INCURRED IN CONNECTION WITH THE RELOCATION, AND THE REASONABLE COST OF REPAIRING THE PERSONAL PROPERTY DAMAGED BY REASON OF THE REMOVAL AND RELOCATION.

RENT OR DAMAGES FOR USE AND OCCUPANCY OF THE LAND PRIOR TO THE EVICTION THAT THE INSURED AS OWNER OF THE LEASEHOLD ESTATE MAY BE OBLIGATED TO PAY TO ANY PERSON HAVING PARAMOUNT TITLE TO THAT OF THE LESSOR IN THE LEASE.

THE AMOUNT OF RENT THAT, BY THE TERMS OF THE LEASE, THE INSURED MUST CONTINUE TO PAY TO THE LESSOR AFTER EVICTION WITH RESPECT TO THE PORTION OF THE LEASEHOLD ESTATE AND TENANT LEASEHOLD IMPROVEMENTS FROM WHICH THE INSURED HAS BEEN EVICTED.

THE FAIR MARKET VALUE, AT THE TIME OF THE EVICTION, OF THE ESTATE OR INTEREST OF THE INSURED IN ANY LEASE OR SUBLEASE MADE BY TENANT AS LESSOR OF ALL OR PART OF THE LEASEHOLD ESTATE OR THE TENANT LEASEHOLD IMPROVEMENTS.

DAMAGES THAT THE INSURED IS OBLIGATED TO PAY TO LESSEES OR SUBLESSEES ON ACCOUNT OF THE BREACH OF ANY LEASE OR SUBLEASE MADE BY THE TENANT AS LESSOR OF ALL OR PART OF THE LEASEHOLD ESTATE OR THE TENANT LEASEHOLD IMPROVEMENTS CAUSED BY THE EVICTION.

REASONABLE COSTS INCURRED BY THE INSURED TO SECURE A REPLACEMENT LEASEHOLD EQUIVALENT TO THE LEASEHOLD ESTATE.

IF TENANT LEASEHOLD IMPROVEMENTS ARE NOT SUBSTANTIALLY COMPLETED AT THE TIME OF EVICTION, THE ACTUAL COST INCURRED BY THE INSURED, LESS THE SALVAGE VALUE, FOR THE TENANT LEASEHOLD IMPROVEMENTS UP TO THE TIME OF EVICTION. THOSE COSTS INCLUDE COSTS INCURRED TO OBTAIN LAND USE, ZONING, BUILDING AND OCCUPANCY PERMITS, ARCHITECTURAL AND ENGINEERING FEES, CONSTRUCTION MANAGEMENT FEES, COSTS OF ENVIRONMENTAL TESTING AND REVIEWS, AND LANDSCAPING COSTS.

(II) MODIFY

THIS ENDORSEMENT IS ISSUED AS PART OF THE POLICY. EXCEPT AS IT EXPRESSLY STATES, IT DOES NOT (I) MODIFY ANY OF THE TERMS AND PROVISIONS OF THE POLICY,

ENDCONT

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE **INSURANCE** COMPANY

ANY PRIOR ENDORSEMENTS, (III) EXTEND THE DATE OF POLICY, OR (IV) AMOUNT OF INSURANCE. TO THE EXTENT A PROVISION OF THE POLICY OR A PREVIOUS ENDORSEMENT IS INCONSISTENT WITH AN EXPRESS PROVISION OF THIS ENDORSEMENT, ENDORSEMENT CONTROLS. OTHERWISE, THIS ENDORSEMENT IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS OF THE POLICY AND OF ANY PRIOR ENDORSEMENTS.

INCREASE **THE**

THIS

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

ARBITRATION ENDORSEMENT

SPECIAL POLICY MODIFICATION ENDORSEMENT

SECTION 14 ENTITLED ARBITRATION OF THE CONDITIONS AND STIPULATIONS OF SAID POLICY IS HEREBY MODIFIED SO AS TO REMOVE COMPANY'S RIGHT TO DEMAND ARBITRATION.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY OR COMMITMENT AND IS SUBJECT TO ALL THE TERMS AND PROVISIONS THEREOF AND ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY OR COMMITMENT AND PRIOR ENDORSEMENTS, IF ANY, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY OR COMMITMENT AND PRIOR ENDORSEMENTS OR INCREASE THE FACE AMOUNT THEREOF.

END1PG

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(CONTINUED)

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

ARBITRATION ENDORSEMENT

SPECIAL POLICY MODIFICATION ENDORSEMENT

SECTION 13 ENTITLED ARBITRATION OF THE CONDITIONS AND STIPULATIONS OF SAID POLICY IS HEREBY MODIFIED SO AS TO REMOVE COMPANY'S RIGHT TO DEMAND ARBITRATION.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY OR COMMITMENT AND IS SUBJECT TO ALL THE TERMS AND PROVISIONS THEREOF AND ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY OR COMMITMENT AND PRIOR ENDORSEMENTS, IF ANY, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY OR COMMITMENT AND PRIOR ENDORSEMENTS OR INCREASE

THE FACE AMOUNT THEREOF,

Chicago Title Insurance Company

CHICAGO TITLE INSURANCE COMPANY, a Nebraska corporation, herein called the Company, for valuable consideration, commits to issue its policy or policies of title insurance, as identified in Schedule A, in favor of the Proposed Insured named in Schedule A, as owner or mortgagee of the estate or interest in the Land described or referred to in Schedule A, upon payment of the premiums and charges and compliance with the Requirements; all subject to the provisions of Schedule A and B and to the Conditions of this Commitment.

This Commitment shall be effective only when the identity of the Proposed Insured and the amount of the policy or policies committed for have been inserted in Schedule A by the Company.

All liability and obligation under this Commitment shall cease and terminate 6 months after the Effective Date or when the policy or policies committed for shall issue, whichever first occurs, provided that the failure to issue the policy or policies is not the fault of the Company.

The Company will provide a sample of the policy form upon request.

IN WITNESS WHEREOF, Chicago Title Insurance Company has caused its corporate name and seal to be affixed by its duly authorized officers on the date shown in Schedule A.

Issued By:

CHICAGO TITLE INSURANCE COMPANY

171 N. CLARK STREET

CHICAGO, IL **60601**

Refer Inquiries **To:**

(312)223-3005

COMCVP06 11/06 DGG

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CHICAGO **TITLE** INSURANCE **COMPANY**

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Commitment No.: 1401 **008392913** D2

01/22/08 **09:47:05**

CHICAGO **TITLE** INSURANCE COMPANY

COMMITMENT FOR **TITLE** INSURANCE

SCHEDULE A

YOUR REFERENCE: **EC2C**

EFFECTIVE DATE: **NOVEMBER** 19, **2007**

1. **POLICY** OR **POLICIES** TO **BE** ISSUED:

OWNER'S **POLICY**:
AMOUNT:

ALTA **OWNERS 2006**

$9,900,000.00

ORDER NO.: 1401 **008392913 D2**

PROPOSED INSURED:

NORTH **SHORE** ICE ARENA, LLC, **AN** ILLINOIS LIMITED LIABILITY **COMPANY**

LOAN POLICY:

AMOUNT:

PROPOSED INSURED:

ALTA LOAN **2006**

$8,490,000.00

AMALGAMATED **BANK OF** CHICAGO, **AS** TRUSTEE

2. THE ESTATE OR INTEREST IN THE LAND DESCRIBED OR REFERRED TO IN THIS COMMITMENT IS FEE SIMPLE, UNLESS OTHERWISE NOTED.

3. TITLE TO THE ESTATE OR INTEREST IN THE LAND IS AT THE EFFECTIVE DATE VESTED IN: SOCIETY OF THE DIVINE WORD, A NOT-FOR-PROFIT CORPORATION ILLINOIS

PRO FORMA TITLE FINDING: NORTH SHORE ICE ARENA, LLC, AN ILLINOIS LIMITED LIABILITY COMPANY.

4A. LOAN POLICY 1 MORTGAGE OR TRUST DEED TO BE INSURED:

MORTGAGE DATED AND RECORDED

AS **DOCUMENT**

$-.

MADE BY TO TO SECURE A **NOTE FOR**

4B. LOAN **POLICY** 2 MORTGAGE OR TRUST DEED TO BE INSURED:

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E

CHICAGO TITLE INSURANCE COMPANY

COMMITMENT FOR TITLE INSURANCE

SCHEDULE A (CONTINUED)

ORDER NO.: 1401 008392913 D2

5.

THE LAND REFERRED TO IN THIS COMMITMENT IS DESCRIBED AS FOLLOWS :

THE ESTATE OR INTEREST IN THE LAND DESCRIBED BELOW AND COVERED HEREIN IS: THE LEASEHOLD ESTATE (SAID LEASEHOLD ESTATE BEING DEFINED IN PARAGRAPH 1.c. OF THE ALTA LEASEHOLD ENDORSEMENT(S) ATTACHED HERETO), CREATED BY THE INSTRUMENT HERE IN REFERRED TO AS THE GROUND LEASE, EXECUTED BY: CHICAGO TITLE LAND TRUST COMPANY, AS TRUSTEE UNDER TRUST AGREEMENT DATED DECEMBER 1, 2007 AND KNOWN AS TRUST NUMBER 1114334, AS LESSOR, AND NORTH SHORE ICE ARENA, LLC AN ILLINOIS LIMITED LIABILITY COMPANY, AS LESSEE, DATED, A SHORT FORM AND MEMORANDUM OF GROUND LEASE WAS RECORDED AS DOCUMENT WHICH GROUND LEASE DEMISES THE FOLLOWING DESCRIBED LAND FOR A TERM OF YEARS BEGINNING AND ENDING

PARCEL 1:

THAT PART OF LOT EC-2 IN TECHNY PARCELS EC-1 AND EC-2, BEING A SUBDIVISION OF PART OF THE WEST HALF OF SECTION 14, AND PART OF THE SOUTHEAST QUARTER OF SECTION 15, ALL IN TOWNSHIP 42 NORTH, RANGE 12, EAST OF THE THIRD PRINCIPAL MERIDIAN, ACCORDING TO THE PLAT THEREOF RECORDED FERUARY 27, 2004 AS DOCUMENT NUMBER 0405844049, DESCRIBED AS FOLLOWS: COMMENCING AT THE SOUTHWEST CORNER OF SAID LOT EC-2; THENCE NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING FIVE COURSES AND DISTANCES: (1) NORTH 41 DEGREES 07 MINUTES 39 SECONDS WEST, 115.77 FEET; (2) NORTH 89 DEGREES 55 MINUTES 05 SECONDS WEST, 211.02 FEET; (3) NORTH 26 DEGREES 54 MINUTES 49 SECONDS WEST, 102.88 FEET; (4) NORTH 37 DEGREES 42 MINUTES 01 SECONDS EAST, 173.60 FEET (5) THENCE NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 687.48 FEET FOR THE PLACE OF BEGINNING; THENCE CONTINUING NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLWOING THREE COURSES AND DISTANCES: (1) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 36.58 FEET; (2) NORTH 42 DEGREES 59 MINUTES 46 SECONDS WEST, 402.42 FEET: (3) THENCE NORTH 81 DEGREES 38 MINUTES 35 SECONDS WEST, 102.67 FEET; THENCE NORTH 56 DEGREES 07 MINUTES 43 SECONDS EAST, 594.75 FEET TO THE EASTERLY LINE OF SAID LOT EC-2, SAID LINE ALSO BEING THE WESTERLY LINE OF HERETOFORE DEDICATED FOUNDERS DRIVE; THENCE SOUTHERLY ALONG THE EASTERLY LINE OF SAID LOT EC-2 THE FOLLOWING TWO COURSES AND DISTANCES (1) ALONG AN ARC OF A CURVE CONCAVE TO THE EAST AND NONTANGENT TO THE LAST DESCRIBED LINE, HAVING A RADIUS OF 780.00 FEET, HAVING A CHORD BEARING OF SOUTH 22 DEGREES 31 MINUTES 41 SECONDS EAST, 401.93 FEET TO A POINT OF REVERSE CURVATURE; (2) THENCE ALONG AN ARC OF A CURVE CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 2540.00 FEET HAVING A CHORD BEARING OF SOUTH 36 DEGREES 00 MINUTES 59 SECONDS EAST, 112.94 FEET; THENCE SOUTH 56 DEGREES 07 MINUTES 43 SECONDS WEST ALONG A LINE NONTANGENT TO THE LAST DESCRIBED CURVE, 385.88 FEET TO THE PLACE OF BEGINNING, IN COOK COUNTY, ILLINOIS

COMMITMENT FOR TITLE INSURANCE

SCHEDULE B

ORDER NO.: 1401

008392913 D2

SCHEDULE B OF THE **POLICY OR POLICIES** TO BE **ISSUED** WILL CONTAIN **EXCEPTIONS** TO THE FOLLOWING MATTERS **UNLESS** THE SAME ARE **DISPOSED OF TO** THE **SATISFACTION** OF THE COMPANY.

GENERAL EXCEPTIONS

1. **RIGHTS** OR CLAIMS **OF** PARTIES IN **POSSESSION NOT** SHOWN **BY** PUBLIC **RECORDS**.

2. **ANY ENCROACHMENT**, ENCUMBRANCE, **VIOLATION**, VARIATION, **OR ADVERSE** CIRCUMSTANCE **AFFECTING THE TITLE THAT WOULD BE DISCLOSED BY** AN ACCURATE **AND** COMPLETE **LAND** SURVEY **OF THE LAND**.

3. EASEMENTS, **OR** CLAIMS OF EASEMENTS, **NOT** SHOWN **BY** PUBLIC **RECORDS**.

4. **ANY LIEN, OR RIGHT TO** A LIEN, FOR SERVICES, LABOR **OR** MATERIAL **HERETOFORE OR** HEREAFTER **FURNISHED, IMPOSED BY** LAW **AND NOT** SHOWN **BY** THE PUBLIC RECORDS.

5. **TAXES OR SPECIAL ASSESSMENTS WHICH ARE NOT SHOWN AS EXISTING** LIENS **BY** THE PUBLIC **RECORDS**

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6. IF **EXTENDED COVERAGE** OVER **THE** FIVE **GENERAL EXCEPTIONS** IS REQUESTED, WE **SHOULD BE FURNISHED THE** FOLLOWING:

A. A **CURRENT** ALTA/**ACSM OR** ILLINOIS LAND **TITLE** SURVEY CERTIFIED TO CHICAGO TITLE **INSURANCE COMPANY;**

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B. A PROPERLY **EXECUTED** ALTA STATEMENT;

MATTERS **DISCLOSED BY** THE **ABOVE** DOCUMENTATION WILL **BE** SHOWN SPECIFICALLY.

NOTE:

THERE WILL **BE AN** ADDITIONAL **CHARGE FOR THIS** COVERAGE.

7. **NOTE FOR INFORMATION:** THE COVERAGE AFFORDED BY THIS COMMITMENT **AND ANY POLICY ISSUED PURSUANT** HERETO SHALL **NOT** COMMENCE **PRIOR TO** THE DATE **ON WHICH** ALL CHARGES

PROPERLY **BILLED BY THE COMPANY** HAVE BEEN FULLY PAID.

8.

1.

TAXES FOR THE YEAR(S) **2006 AND 2007 2007**
TAXES ARE NOT **YET DUE** OR PAYABLE.

1A.

NOTE: 2006 FIRST INSTALLMENT **WAS DUE MARCH** 01, **2007 NOTE: 2006** FINAL INSTALLMENT **IS DUE** DECEMBER 3, 2007

PCL YEAR **1ST INST** STAT **2ND INST** STAT

2006 NOT BILLED

NOT BILLED

PERM TAX**# 04-14-305-001-0000** 1 **OF** 1

THIS TAX NUMBER AFFECTS PARCEL IN QUESTION AND OTHER PROPERTY.

PERM TAX# 04-14-305-001-0000

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THE GENERAL **TAXES** AS **SHOWN** BELOW **ARE MARKED** EXEMPT **ON THE**

COLLECTOR'S WARRANTS.

YEAR**(S):** 2005 **AND** PRIOR

CHICAGO TITLE INSURANCE COMPANY

COMMITMENT FOR TITLE INSURANCE

SCHEDULE B (CONTINUED)

ORDER NO.: 1401 008392913 D2

UNLESS SATISFACTORY EVIDENCE IS SUBMITTED TO SUBSTANTIATE SAID EXEMPTION OUR POLICY, IF AND WHEN ISSUED, WILL BE SUBJECT TO SAID TAXES.

D 9. EXISTING UNRECORDED LEASES AND ALL RIGHTS THEREUNDER OF THE LESSEES AND OF ANY PERSON OR PARTY CLAIMING BY, THROUGH OR UNDER THE LESSEES.

E 10. WE SHOULD BE FURNISHED A STATEMENT THAT THERE IS NO PROPERTY MANAGER EMPLOYED TO MANAGE THE LAND, OR, IN THE ALTERNATIVE, A FINAL LIEN WAIVER FROM ANY SUCH PROPERTY MANAGER.

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11. WE SHOULD BE FURNISHED A CERTIFIED COPY OF THE DIRECTORS' RESOLUTIONS AUTHORIZING THE CONVEYANCE OR MORTGAGE TO BE INSURED. SAID RESOLUTIONS SHOULD EVIDENCE THE AUTHORITY OF THE PERSONS EXECUTING THE CONVEYANCE OR MORTGAGE. IF THEY DO NOT, A CERTIFIED COPY OF THE CORPORATE BY-LAWS ALSO SHOULD BE FURNISHED.

IF SAID CONVEYANCE OR MORTGAGE COMPRISES ALL OR SUBSTANTIALLY ALL THE CORPORATION'S ASSETS, WE ALSO SHOULD BE FURNISHED A CERTIFIED COPY OF THE SHAREHOLDER/MEMBER RESOLUTIONS WHICH AUTHORIZE SAID CONVEYANCE OR MORTGAGE. THIS COMMITMENT IS SUBJECT TO SUCH FURTHER EXCEPTIONS, IF ANY, AS MAY BE DEEMED NECESSARY AFTER OUR REVIEW OF THESE MATERIALS.

12. WE SHOULD BE FURNISHED A CURRENT CERTIFICATE OF GOOD STANDING FROM THE ILLINOIS SECRETARY OF STATE FOR SOCIETY OF THE DIVINE WORD, A CORPORATION OF ILLINOIS.

13. AN EXECUTED COPY OF THE LEASE CREATING THE TITLE TO THE LEASEHOLD ESTATE DESCRIBED IN SCHEDULE A SHOULD BE FURNISHED (TO BE RETAINED BY THE COMPANY), AND THIS COMMITMENT IS SUBJECT TO SUCH FURTHER EXCEPTIONS, IF ANY, AS MAY THEN BE DEEMED NECESSARY.

14. THE LEASE CREATING THE LEASEHOLD ESTATE DESCRIBED IN SCHEDULE A HEREOF, OR A PROPER MEMORANDUM THEREOF, SHOULD BE RECORDED, AND THIS COMMITMENT IS SUBJECT TO SUCH FURTHER EXCEPTIONS, IF ANY, AS MAY THEN BE DEEMED NECESSARY.

IF A MEMORANDUM OF LEASE IS TO BE RECORDED, SAID MEMORANDUM SHOULD CONTAIN THE NAMES OF THE PARTIES THERETO, A DESCRIPTION OF THE DEMISED PREMISES, THE COMMENCEMENT AND TERMINATION DATES OF SAID LEASE AND WORDS OF ACTUAL DEMISE.

15. A WRITTEN STATEMENT SHOULD BE FURNISHED FROM THE OWNER OF THE FEE IN THE LAND, STATING THAT THERE HAS BEEN NO DEFAULT IN THE PAYMENT OF THE RENTS; THAT THERE ARE NO DEFAULTS UNDER ANY OTHER COVENANTS OF THE LEASE TO BE PERFORMED BY THE LESSEE; AND THAT THERE ARE NO CHARGES WHICH THE OWNERS CLAIM TO BE ADDITIONAL LIENS UPON THE LEASEHOLD ESTATE.

16. UPON ANY CONVEYANCE OR MORTGAGE OF THE LAND, A STATEMENT FROM THE SECRETARY OF THE BOARD OF MANAGERS OF THE TOWNHOME, HOMEOWNERS, OR OTHER ASSOCIATION, THAT THERE ARE NO UNPAID ASSESSMENT LIENS EXISTING BY REASON OF THE NONPAYMENT OF

CHICAGO TITLE INSURANCE COMPANY

COMMITMENT FOR TITLE INSURANCE

SCHEDULE B (CONTINUED)

ORDER NO.: 1401 008392913 D2

ASSESSMENTS SHOULD BE FURNISHED.

NOTE: THE STATEMENT SHOULD COVER THE RECORDING DATE OF THE MORTGAGE OR, IF TITLE IS TO BE CONVEYED, THE RECORDING DATE OF THE DEED, WHICHEVER DATE IS LATER.

J 17. ORDINANCE ESTABLISHING PROPERTY SHARES FOR INDIRECT BENEFITS PROVIDED BY THE LEE-GRANT WATER FEEDER MAIN ORDINANCE NUMBER 80-35 RECORDED SEPTEMBER 17, 1980 AS DOCUMENT 25587903.

K 18. ANNEXATION AGREEMENT DATED DECEMBER 15, 1988 AND RECORDED DECEMBER 16, 1988 AS DOCUMENT 88581079 MADE BY AND BETWEEN SOCIETY OF THE DIVINE WORD, A NOT-FOR-PROFIT CORPORATION ILLINOIS AND VILLAGE OF NORTHBROOK.

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FIRST AMENDMENT RECORDED MARCH 27, 1991 AS DOCUMENT 91137573. SECOND AMENDMENT RECORDED NOVEMBER 10, 1993 AS DOCUMENT 93916442. THIRD AMENDMENT RECORDED NOVEMBER 12, 1999 AS DOCUMENT NUMBER 09067534. FOURTH AMENDMENT RECORDED MAY 31, 2005 AS DOCUMENT NUMBER 0515103085. FIFTH AMENDMENT RECORDED

AUGUST 18, 2005 AS DOCUMENT NUMBER 0523032093. SIXTH AMENDMENT RECORDED MARCH 8, 2006 AS DOCUMENT NUMBER 0606718036. SEVENTH AMENDMENT RECORDED DECEMBER 15, 2006 0634939087.

19. EASEMENT IN FAVOR OF THE VILLAGE OF NORTHBROOK, AND ITS/THEIR RESPECTIVE SUCCESSORS AND ASSIGNS, TO INSTALL, OPERATE AND MAINTAIN ALL EQUIPMENT NECESSARY FOR THE PURPOSE OF SERVING THE LAND AND OTHER PROPERTY, TOGETHER WITH THE RIGHT OF ACCESS TO SAID EQUIPMENT, AND THE PROVISIONS RELATING THERETO CONTAINED IN THE PLAT RECORDED/FILED AS DOCUMENT NO. 0405844049, AFFECTING THE LAND AS FOLLOWS:

A 25 FOOT STRIP AFFECTING THE EAST AND NORTHEAST PORTION OF LOT EC-2;

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20. PORTIONS OF THE PROPERTY LIE WITHIN THE LIMITS OF THE FLOOD HAZARD AREA, AS DISCLOSED BY FINAL PLAT OF SUBDIVISION OF TECHNY PARCELS EC-1 AND EC-2 RECORDED AS DOCUMENT NUMBER 0405844049.

21. DECLARATION ESTABLISHING COVENANTS, CONDITIONS, RESTRICTIONS, EASEMENTS AND RIGHTS FOR REAL ESTATE PARCELS NC-1, EC-1, EC-2, AND SE-1 WITHIN THE TECHNY PROPERTY, NORTHBROOK, ILLINOIS AND PROVIDING FOR THE TECHNY PROPERTY ASSOCIATION RECORDED NOVEMBER 12, 1999 AS DOCUMENT NUMBER 09067537. AMENDED AND RESTATED DECLARATION ESTABLISHING COVENANTS, CONDITIONS, RESTRICTIONS, EASEMENTS AND RIGHTS FOR REAL ESTATE PARCELS NC-1, EC-1, EC-2, AND SE-1 WITHIN THE TECHNY PROPERTY, NORTHBROOK, ILLINOIS AND PROVIDING FOR THE TECHNY PROPERTY ASSOCIATION RECORDED SEPTEMBER 19, 2005 AS DOCUMENT NUMBER 0526227126.

22. THE DEVELOPER HAS RESERVED THE RIGHT TO ADD PROPERTY DEFINED AS PARCEL W-2 TO THE DELCARATION ESTABLISHING COVENANTS, CONDITIONS, RESTRICTIONS, EASEMENTS AND RIGHTS FOR REAL ESTATE PARCELS NC-1, EC-1, EC-2 AND SE-1 WITHIN TECHNY

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CHICAGO TITLE INSURANCE COMPANY

COMMITMENT FOR TITLE INSURANCE

SCHEDULE B (CONTINUED)

ORDER NO.: 1401 008392913 D2

PROPERTY, NORTHBOOK ILLINOIS, AND PROVIDING FOR THE TECHNY PROPERTY ASSOCIATION RECORDED NOVEMBER 12, 1999 AS DOCUMENT NUMBER 09067537, AND IN THE EVENT OF SUCH ADDITION, TO REALLOCATE PERCENTAGE INTERESTS IN THE COMMON ELEMENTS.

23. PERMANENT AND PERPETUAL EASEMENT IS HEREBY GRANTED TO THE VILLAGE OF NORTHBROOK, ITS SUCCESSORS AND ASSIGNS, TO TEST, INSPECT, REPAIR, REPLACE, ALTER, REMOVE OR ABANDON IN PLACE WATER MAIN, STORM SEWER, SANITARY SEWER, PUBLIC SIDEWALK, STREET LIGHTING AND DRAINAGE, UPON, UNDER, ALONG AND ACROSS THE AREA DESIGNATED "VILLAGE UTILITY EASEMENT, PUBLIC UTILITIES EASEMENT ON THE SUBDIVISION, ALSO GRANTED HEREWITH IS THE RIGHT TO CUT, TRIM OR REMOVE TREES, BUSHES ETC. AS SHOWN ON PLAT OF FINAL PLAT OF SUBDIVISION OF TECHNY PARCELS EC-1 AND EC-2 RECORDED AS DOCUMENT 0405844049.

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24. TERMS AND PROVISIONS OF SUBDIVISION AND DEVELOPMENT AGREEMENT BY, BETWEEN AND AMONG THE VILLAGE OF NORTHBROOK AND SOCIETY OF THE DIVINE WORD (TECHNY REAL ESTATE PARCELS EC-1 AND EC-2) DATED JANUARY 13, 2004 AND RECORDED FEBRUARY 27, 2004 AS DOCUMENT NUMBER 0405844048.

25. TERMS, PROVISIONS AND CONDITIONS CONTAINED IN THE TRANSPORTATION FACILITY AND

PROGRAMS AGREEMENT RECORDED JULY 7, 1989 AS DOCUMENT NUMBER 89309243, MADE BY AND AMONG THE VILLAGE OF NORTHBROOK AND SOCIETY OF THE DIVINE WORD AND RUBLOFF INC.

FIRST AMENDED AND RESTATED TRANSPORTATION FACILITIES AND PROGRAMS AGREEMENT DATED JULY 13, 1999 AND RECORDED NOVEMBER 12, 1999 AS DOCUMENT NUMBER 09067536.

26. NOTE FOR INFORMATION (ENDORSEMENT REQUESTS)
:

ALL ENDORSEMENT REQUESTS SHOULD BE MADE PRIOR TO CLOSING TO ALLOW AMPLE TIME FOR THE COMPANY TO EXAMINE REQUIRED DOCUMENTATION.

(THIS NOTE WILL BE WAIVED FOR POLICY).

R 27. INFORMATIONAL NOTE:

TO SCHEDULE A RESIDENTIAL CLOSING IN OUR CHICAGO LOOP OFFICE, OR TO RECEIVE CLOSING FIGURES, PLEASE CALL OUR AUTOMATED INFORMATION LINE AT (312) 223-2800.

TO FAX FIGURES TO OUR CHICAGO LOOP OFFICE FOR RESIDENTIAL CLOSINGS, PLEASE DIAL (312) 223-2815.

TO SCHEDULE ANY CLOSINGS IN THE CHICAGO COMMERCIAL CENTER, PLEASE CALL (312) 223-2707.

TO FAX FIGURES FOR A RESIDENTIAL CLOSING IN THE CHICAGO COMMERCIAL CENTER PLEASE DIAL (312) 223-5888

** END **

CHICAGO TITLE INSURANCE COMPANY

COMMITMENT FOR TITLE INSURANCE

CONDITIONS

ORDER NO.: 1401

008392913 D2

1. The term mortgage, when used herein, shall include deed of trust, trust deed, or other security instrument.

2. If the proposed Insured has or acquired actual knowledge of any defect, lien, encumbrance, adverse claim or other matter affecting the estate or interest or mortgage thereon covered by this Commitment other than those shown in Schedule B hereof, and shall fail to disclose such knowledge to the Company in writing, the Company shall be relieved from liability for any loss or damage resulting from any act of reliance hereon to the extent the Company is prejudiced by failure to so disclose such knowledge. If the proposed Insured shall disclose such knowledge to the Company, or if the company otherwise acquires actual knowledge of any such defect, lien, encumbrance, adverse claim or other matter, the Company at its option may amend Schedule B of this Commitment accordingly, but such amendment shall not relieve the Company from liability previously incurred pursuant to paragraph 3 or these Conditions.

3. Liability of the Company under this Commitment shall be only to the named proposed Insured and such parties included under the definition of Insured in the form of policy or policies committed for and only for actual loss incurred in reliance hereon in undertaking in good faith (a) to comply with the requirements hereof, or (b) to eliminate exceptions shown in Schedule B, or (c) to acquire or create the estate or interest or mortgage thereon covered by this Commitment. In no event shall such liability exceed the amount stated in Schedule A for the policy or policies committed for and such liability is subject to the insuring provisions and Conditions and the Exclusions from Coverage of the form of policy or policies committed for in favor of the proposed Insured which are hereby incorporated by reference and are made a part of this Commitment except as expressly modified herein.

4. This Commitment is a contract to issue one or more title insurance policies and is not an abstract of title or a report of the condition of title. Any action or actions or rights of action that the proposed Insured may have or may bring against the Company arising out of the status of the title to the estate or interest or the status of the mortgage thereon covered by this Commitment must be based on and are subject to the provisions of this Commitment.

5. The policy to be issued contains an arbitration clause. All arbitrable matters when the Amount of Insurance is

$2,000,000 or less shall be arbitrated at the option of either the Company or the Insured as the exclusive remedy of the parties. You may review a copy of the arbitration rules at <http://www.alta.org/>.

Fidelity National Financial Group of Companies' Privacy Statement

July 1, 2001

We recognize and respect the privacy expectations of today's consumers and the requirements of applicable federal and state privacy laws. We believe that making you aware of how we use your non-public personal information ("Personal Information"), and to whom it is disclosed, will form the basis for a relationship of trust between us and the public we serve. This Privacy Statement provides that explanation. We reserve the right to change this Privacy Statement from time to time consistent with applicable privacy laws.

In the course of our business, we may collect Personal Information about you from the following sources:

From applications or other forms we receive from you or your authorized representative;

From your transactions with, or from the services being performed by, us, our

affiliates, or others;

From our internet web sites;

From the public records maintained by governmental entities that we either obtain directly from those entities, or from our affiliates or others; and

From consumer or other reporting agencies.

Our Policies Regarding the Protection of the Confidentiality and Security of Your Personal Information

We maintain physical, electronic and procedural safeguards to protect your Personal Information from unauthorized access or intrusion. We limit access to the Personal Information only to those employees who need such access in connection with providing products or services to you or for other legitimate business purposes.

Our Policies and Practices Regarding the Sharing of Your Personal Information

We may share your Personal Information with our affiliates, such as insurance companies, agents, and other real estate settlement service providers. We may also disclose your Personal Information:

to agents, brokers or representatives to provide you with services you have requested;

to third-party contractors or service providers who provide services or perform marketing or other functions on our behalf; and

to others with whom we enter into joint marketing agreements for products or services that we believe you may find of interest.

In addition, we will disclose your Personal Information when you direct or give us permission, when we are required by law to do so, or when we suspect fraudulent or criminal activities. We also may disclose your Personal Information when otherwise permitted by applicable privacy laws such as, for example, when disclosure is needed to enforce our rights arising out of any agreement, transaction or relationship with you.

One of the important responsibilities of some of our affiliated companies is to record documents in the public domain. Such documents may contain your Personal Information.

Right to Access Your Personal Information and Ability To Correct Errors Or Request Changes Or Deletion

Certain states afford you the right to access your Personal Information and, under certain circumstances, to find out to whom your Personal Information has been disclosed. Also, certain states afford you the right to request correction, amendment or deletion of your Personal Information. We reserve the right, where permitted by law, to charge a reasonable fee to cover the costs incurred in responding to such requests.

All requests must be made in writing to the following address:

Privacy Compliance Officer
Fidelity National
Financial, Inc.
601 Riverside Avenue Jacksonville, FL **32204**

Multiple Products or
Services

If we **provide** you **with** more than one financial product or service, **you may** receive more **than** one **privacy** notice from **us.** We apologize for any **inconvenience** this **may** cause you.

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF
POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

ALTA ENDORSEMENT FORM 13-06

1. AS USED IN THIS ENDORSEMENT, THESE TERMS SHALL MEAN THE FOLLOWING:

A. "EVICTED" OR "EVICTION": (A) THE LAWFUL DEPRIVATION, IN WHOLE OR IN PART, OF THE RIGHT OF POSSESSION INSURED BY THIS POLICY, CONTRARY TO THE TERMS OF THE LEASE OR (B) THE LAWFUL PREVENTION OF THE USE OF THE LAND OR THE TENANT LEASEHOLD IMPROVEMENTS FOR THE PURPOSES PERMITTED BY THE LEASE, IN EITHER CASE AS A RESULT OF A MATTER COVERED BY THIS POLICY.

B. "LEASE": THE LEASE AGREEMENT DESCRIBED IN SCHEDULE A.

C. "LEASEHOLD ESTATE": THE RIGHT OF POSSESSION FOR THE LEASE TERM.

D. "LEASE TERM": THE DURATION OF THE LEASEHOLD ESTATE, INCLUDING ANY RENEWAL OR EXTENDED TERM IF A VALID OPTION TO RENEW OR EXTEND IS CONTAINED IN THE LEASE.

E. "PERSONAL PROPERTY": CHATTELS LOCATED ON THE LAND AND PROPERTY WHICH, BECAUSE OF THEIR CHARACTER AND MANNER OF AFFIXATION TO THE LAND, CAN BE SEVERED FROM THE LAND WITHOUT CAUSING APPRECIABLE DAMAGE TO THEMSELVES OR TO THE LAND TO WHICH THEY ARE AFFIXED.

F. "REMAINING LEASE TERM": THE PORTION OF THE LEASE TERM REMAINING AFTER THE INSURED HAS BEEN EVICTED AS A RESULT OF A MATTER COVERED BY THIS POLICY.

G. "TENANT LEASEHOLD IMPROVEMENTS": THOSE IMPROVEMENTS, INCLUDING LANDSCAPING, REQUIRED OR PERMITTED TO BE BUILT ON THE LAND BY THE LEASE THAT HAVE BEEN BUILT AT THE INSURED'S EXPENSE OR IN WHICH THE INSURED HAS AN INTEREST GREATER THAN THE RIGHT TO POSSESSION DURING THE LEASE TERM.

2. VALUATION OF ESTATE OR INTEREST INSURED

IF IN COMPUTING LOSS OR DAMAGE IT BECOMES NECESSARY TO VALUE THE TITLE AS THE RESULT OF A COVERED MATTER THAT RESULTS IN AN EVICTION OF THE TENANT, THEN THAT VALUE SHALL CONSIST OF THE VALUE FOR THE REMAINING LEASE TERM OF THE LEASEHOLD ESTATE AND ANY TENANT LEASEHOLD IMPROVEMENTS EXISTING ON THE DATE OF THE EVICTION. THE INSURED CLAIMANT SHALL HAVE THE RIGHT TO HAVE THE LEASEHOLD ESTATE AND THE TENANT LEASEHOLD IMPROVEMENTS VALUED EITHER AS A WHOLE OR SEPARATELY. IN EITHER EVENT, THIS DETERMINATION OF VALUE SHALL TAKE INTO ACCOUNT RENT NO LONGER REQUIRED TO BE PAID FOR THE

REMAINING LEASE TERM.

3. **ADDITIONAL ITEMS OF LOSS** COVERED **BY** THIS **ENDORSEMENT**

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(CONTINUED)

ENDCONT

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

IF THE INSURED IS EVICTED, THE FOLLOWING ITEMS OF LOSS, IF APPLICABLE, SHALL BE INCLUDED IN COMPUTING LOSS OR DAMAGE INCURRED BY THE INSURED, BUT NOT TO THE EXTENT THAT THE SAME ARE INCLUDED IN THE VALUATION OF THE TITLE.

A. THE REASONABLE COST OF REMOVING AND RELOCATING ANY PERSONAL PROPERTY THAT THE INSURED HAS THE RIGHT TO REMOVE AND RELOCATE, SITUATED ON THE LAND AT THE TIME OF EVICTION, THE COST OF TRANSPORTATION OF THAT PERSONAL PROPERTY FOR THE INITIAL ONE HUNDRED MILES INCURRED IN CONNECTION WITH THE RELOCATION, AND THE REASONABLE COST OF REPAIRING THE PERSONAL PROPERTY DAMAGED BY REASON OF THE REMOVAL AND RELOCATION.

B.

C.

D.

E.

F.

G. RENT OR DAMAGES FOR USE AND OCCUPANCY OF THE LAND PRIOR TO THE EVICTION THAT THE INSURED AS OWNER OF THE LEASEHOLD ESTATE MAY BE OBLIGATED TO PAY TO ANY PERSON HAVING PARAMOUNT TITLE TO THAT OF THE LESSOR IN THE LEASE.

THE AMOUNT OF RENT THAT, BY THE TERMS OF THE LEASE, THE INSURED MUST CONTINUE TO PAY TO THE LESSOR AFTER EVICTION WITH RESPECT TO THE PORTION OF THE LEASEHOLD ESTATE AND TENANT LEASEHOLD IMPROVEMENTS FROM WHICH THE INSURED HAS BEEN EVICTED.

THE FAIR MARKET VALUE, AT THE TIME OF THE EVICTION, OF THE ESTATE OR INTEREST OF THE INSURED IN ANY LEASE OR SUBLEASE MADE BY TENANT AS LESSOR OF ALL OR PART OF THE LEASEHOLD ESTATE OR THE TENANT LEASEHOLD IMPROVEMENTS.

DAMAGES THAT THE INSURED IS OBLIGATED TO PAY TO LESSEES OR SUBLESSEES ON ACCOUNT OF THE BREACH OF ANY LEASE OR SUBLEASE MADE BY THE TENANT AS LESSOR OF ALL OR PART OF THE LEASEHOLD ESTATE OR THE TENANT LEASEHOLD IMPROVEMENTS CAUSED BY THE EVICTION.

REASONABLE COSTS INCURRED BY THE INSURED TO SECURE A REPLACEMENT LEASEHOLD EQUIVALENT TO THE LEASEHOLD ESTATE.

IF TENANT LEASEHOLD IMPROVEMENTS ARE NOT SUBSTANTIALLY COMPLETED AT THE TIME OF EVICTION, THE ACTUAL COST INCURRED BY THE INSURED, LESS THE SALVAGE VALUE, FOR THE TENANT LEASEHOLD IMPROVEMENTS UP TO THE TIME OF EVICTION. THOSE COSTS INCLUDE COSTS INCURRED TO OBTAIN LAND USE, ZONING, BUILDING AND OCCUPANCY PERMITS, ARCHITECTURAL AND ENGINEERING FEES, CONSTRUCTION MANAGEMENT FEES, COSTS OF ENVIRONMENTAL TESTING AND REVIEWS, AND LANDSCAPING COSTS.

THIS ENDORSEMENT IS ISSUED AS PART OF THE POLICY. EXCEPT AS IT EXPRESSLY STATES, IT DOES NOT (1) MODIFY ANY OF THE TERMS AND PROVISIONS OF THE POLICY, (11) MODIFY ANY PRIOR ENDORSEMENTS, (111) EXTEND THE DATE OF POLICY, OR (IV) INCREASE THE AMOUNT OF INSURANCE. TO THE EXTENT A PROVISION OF THE POLICY OR A PREVIOUS ENDORSEMENT IS INCONSISTENT WITH AN EXPRESS PROVISION OF THIS ENDORSEMENT, THIS

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ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - **008392913** - D2

ISSUED **BY**

CHICAGO **TITLE** INSURANCE COMPANY

ENDORSEMENT CONTROLS. OTHERWISE, THIS **ENDORSEMENT IS** SUBJECT **TO ALL OF THE** TERMS AND **PROVISIONS** OF **THE POLICY AND OF ANY** PRIOR ENDORSEMENTS.

ENDORSEMENT

ATTACHED **TO** AND FORMING A PART OF

POLICY NUMBER**:**

1401 **- 008392913 - D2**

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

This Endorsement has been approved for Pro-Forma purposes only, and will be considered for issuance upon our receipt and review of the following: A COMPLETED ALTA STATEMENT

POLICY MODIFICATION ENDORSEMENT 4

GENERAL EXCEPTION NUMBER(S) 1 TO 5 OF SCHEDULE B OF THIS POLICY ARE HEREBY DELETED.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

ENDIPG

JR

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

LOCATION ENDORSEMENT 5 SURVEY

THE COMPANY HEREBY INSURES THE INSURED AGAINST LOSS OR DAMAGE WHICH THE INSURED SHALL SUSTAIN IN THE EVENT THAT:

THE PLAT OF SURVEY MADE BY V3 ENGINEERS, NUMBER 8904EC2.NSIA, DATED OCTOBER 25, 2007, DOES NOT

ACCURATELY DEPICT THE LOCATIONS OF THE EXTERIOR BOUNDARIES OF THE LAND DESCRIBED IN SCHEDULE A, DOES NOT SHOW THE PROPER DIMENSIONS OF SAID BOUNDARIES, AND DOES NOT CORRECTLY REFLECT THE ABSENCE AS OF THE DATE OF SAID SURVEY OF ANY ENCROACHMENTS OR EASEMENTS NOT OTHERWISE EXPRESSLY SET FORTH IN SCHEDULE B.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

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JR

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

LOCATION **ENDORSEMENT** 6 **CONTIGUITY TO** STREET

THE **COMPANY** HEREBY INSURES THE INSURED AGAINST **LOSS OR DAMAGE WHICH** THE INSURED **SHALL SUSTAIN** IN **THE EVENT THAT, AT** DATE **OF POLICY**:

THE LAND DESCRIBED IN SCHEDULE A **IS NOT CONTIGUOUS TO** A PHYSICALLY OPEN **AND PUBLICALLY DEDICATED** STREET **KNOWN AS FOUNDERS** DRIVE,

THIS ENDORSEMENT **IS** MADE A PART OF THE POLICY **AND** IS SUBJECT TO ALL **OF** THE TERMS AND **PROVISIONS** THEREOF **AND OF ANY PRIOR** ENDORSEMENTS THERETO. **EXCEPT TO THE EXTENT EXPRESSLY** STATED, **IT** NEITHER MODIFIES **ANY OF** THE TERMS **AND PROVISIONS** OF THE POLICY **AND ANY PRIOR** ENDORSEMENTS, **NOR** DOES **IT EXTEND THE** EFFECTIVE DATE OF **THE** POLICY AND **ANY** PRIOR ENDORSEMENTS, **NOR** DOES **IT** INCREASE THE FACE **AMOUNT THEREOF**.

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

UTILITY FACILITY ENDORSEMENT

THE COMPANY HEREBY INSURES THE INSURED AGAINST LOSS OR DAMAGE WHICH SAID INSURED SHALL SUSTAIN BY REASON OF ANY INACCURACIES IN THE FOLLOWING ASSURANCE:

1. WATER, GAS, ELECTRIC, TELEPHONE, STORM SEWER AND SANITARY SEWER SERVICES ARE AVAILABLE TO THE LAND DESCRIBED IN SCHEDULE A EITHER OVER, UNDER OR UPON PUBLIC RIGHTS OF WAY DIRECTLY ADJACENT TO SAID LAND OR OVER, UNDER OR UPON AN EASEMENT (NOT TERMINABLE BY THE GRANTOR THEREOF OR BY HIS HEIRS, PERSONAL REPRESENTATIVES, SUCCESSORS OR ASSIGNS) FOR THE BENEFIT OF SAID LAND THAT CONNECTS TO PUBLIC RIGHTS OF WAY.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

ENDIPG

JR

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF
POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

This Endorsement has been approved for Pro-Forma purposes only, and will be considered for issuance upon our receipt and review of the following: intended use of the property in Techny Overlay District

ALTA ENDORSEMENT FORM 3-06

1.
THE COMPANY INSURES AGAINST LOSS OR DAMAGE SUSTAINED BY THE INSURED IN THE EVENT THAT, AT DATE OF POLICY,

A. ACCORDING TO APPLICABLE ZONING ORDINANCES AND AMENDMENTS, THE LAND IS NOT CLASSIFIED ZONE ~;

B. THE FOLLOWING USE OR USES ARE NOT ALLOWED UNDER THAT CLASSIFICATION:

2. THERE SHALL BE NO LIABILITY UNDER THIS ENDORSEMENT BASED ON

A. LACK OF COMPLIANCE WITH ANY CONDITIONS, RESTRICTIONS, OR REQUIREMENTS CONTAINED IN THE ZONING ORDINANCES AND AMENDMENTS, INCLUDING BUT NOT LIMITED TO THE FAILURE TO SECURE NECESSARY CONSENTS OR AUTHORIZATIONS AS A PREREQUISITE TO THE USE OR USES. THIS PARAGRAPH 2.A. DOES NOT MODIFY OR LIMIT THE COVERAGE PROVIDED IN COVERED RISK 5.

B. THE INVALIDITY OF THE ZONING ORDINANCES AND AMENDMENTS UNTIL AFTER A FINAL DECREE OF A COURT OF COMPETENT JURISDICTION ADJUDICATING THE INVALIDITY, THE EFFECT OF WHICH IS TO PROHIBIT THE USE OR USES.

C. THE REFUSAL OF ANY PERSON TO PURCHASE, LEASE OR LEND MONEY ON THE ESTATE OR INTEREST COVERED BY THIS POLICY.

THIS ENDORSEMENT IS ISSUED AS PART OF THE POLICY. EXCEPT AS IT EXPRESSLY STATES, IT DOES NOT (1) MODIFY ANY OF THE TERMS AND PROVISIONS OF THE POLICY, (11) MODIFY ANY PRIOR ENDORSEMENTS, (111) EXTEND THE DATE OF POLICY, OR (IV) INCREASE THE AMOUNT OF INSURANCE. TO THE EXTENT A PROVISION OF THE POLICY OR A PREVIOUS ENDORSEMENT IS INCONSISTENT WITH AN EXPRESS PROVISION OF THIS ENDORSEMENT, THIS ENDORSEMENT CONTROLS. OTHERWISE, THIS ENDORSEMENT IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS OF THE POLICY AND OF ANY PRIOR ENDORSEMENTS.

JR

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

This Endorsement has been approved for Pro-Forma purposes only, and will be considered for issuance upon our receipt and review of the following: A COMPLETED ALTA STATEMENT AND A STATEMENT THAT THE SELLER IS NOT IN VIOLATION OF ANY OF THE COVENANTS, CONDITIONS OR RESTRICTIONS ON THE PROPERTY.

OWNER'S COMPREHENSIVE ENDORSEMENT 1B

THE COMPANY INSURES THE INSURED AGAINST LOSS OR DAMAGE SUSTAINED:

1. IN THE EVENT THAT, AT DATE OF POLICY, UNLESS EXPRESSLY EXCEPTED IN SCHEDULE B: (A) THERE ARE PRESENT VIOLATIONS ON THE LAND OF ANY ENFORCEABLE COVENANTS, CONDITIONS OR RESTRICTIONS, AND ANY EXISTING IMPROVEMENTS ON THE LAND WHICH VIOLATE ANY BUILDING SETBACK LINES SHOWN ON A PLAT OF SUBDIVISION RECORDED OR FILED IN THE PUBLIC RECORDS. (2) ANY INSTRUMENT REFERRED TO IN SCHEDULE B AS CONTAINING COVENANTS, CONDITIONS OR RESTRICTIONS ON THE LAND, IN ADDITION, (i) ESTABLISHES AN EASEMENT ON THE LAND; (ii) PROVIDES A LIEN FOR LIQUIDATED DAMAGES; (111) PROVIDES FOR A PRIVATE CHARGE OR ASSESSMENT; (iv) PROVIDES FOR AN OPTION TO PURCHASE, A RIGHT OF FIRST REFUSAL OR THE PRIOR APPROVAL OF A FUTURE PURCHASER OR OCCUPANT. (3) THERE IS ANY ENCROACHMENT OF EXISTING IMPROVEMENTS LOCATED ON THE LAND ONTO ADJOINING LAND, OR ANY ENCROACHMENT ONTO THE LAND OF EXISTING IMPROVEMENTS LOCATED ON ADJOINING LAND. (4) THERE IS ANY ENCROACHMENT OF EXISTING IMPROVEMENTS LOCATED ON THE LAND ONTO THAT PORTION OF THE LAND SUBJECT TO ANY EASEMENT EXCEPTED IN SCHEDULE B. (5) THERE ARE ANY NOTICES OF VIOLATION OF COVENANTS, CONDITIONS AND RESTRICTIONS RELATING TO ENVIRONMENTAL PROTECTION RECORDED OR FILED IN THE PUBLIC RECORDS.

2. BY REASON OF ANY FINAL COURT ORDER OR JUDGMENT REQUIRING THE REMOVAL FROM ANY LAND ADJOINING THE LAND OF ANY ENCROACHMENT EXCEPTED IN SCHEDULE B.

3. BY REASON OF ANY FINAL COURT ORDER OR JUDGMENT DENYING THE RIGHT TO MAINTAIN ANY EXISTING IMPROVEMENTS ON THE LAND BECAUSE OF ANY VIOLATION OF COVENANTS, CONDITIONS OR RESTRICTIONS OR BUILDING SETBACK LINES SHOWN ON A PLAT OF SUBDIVISION RECORDED OR FILED IN THE PUBLIC RECORDS.

WHEREVER IN THIS ENDORSEMENT THE WORDS "COVENANTS, CONDITIONS OR RESTRICTIONS" APPEAR, THEY SHALL NOT BE DEEMED TO REFER TO OR INCLUDE THE TERMS, COVENANTS, CONDITIONS OR LIMITATIONS CONTAINED IN AN INSTRUMENT CREATING A LEASE. AS USED IN PARAGRAPHS 1 AND 3, THE WORDS "COVENANTS, CONDITIONS OR RESTRICTIONS" SHALL NOT BE DEEMED TO REFER TO OR INCLUDE ANY COVENANTS, CONDITIONS OR RESTRICTIONS RELATING TO ENVIRONMENTAL PROTECTION.

NOTHWITHSTANDING PARAGRAPH 1 ABOVE, NO INSURANCE IS PROVIDED REGARDING ENCROACHMENT OF FENCES, BOUNDARY WALLS, SIDEWALKS, DRIVEWAYS, OR OTHER PAVED AREAS ON THE LAND.

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(CONTINUED)

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL THE TERMS AND PROVISIONS THEREOF AND ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

ENDCONT

ENDORSEMENT

ATTACHED **TO** AND FORMING A **PART OF**

POLICY NUMBER: 1401 - 008392913 - **D2**

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

P.1.N. ENDORSEMENT 2

THE COMPANY HEREBY INSURES THE INSURED AGAINST LOSS OR DAMAGE WHICH THE INSURED SHALL SUSTAIN IN THE EVENT THAT, AT DATE OF POLICY:

(1) THE LAND DESCRIBED IN SCHEDULE A DOES NOT CONSTITUTE A PORTION OF A SINGLE PARCEL FOR REAL ESTATE TAX PURPOSES; AND

(2) THE LAND DESCRIBED IN SCHEDULE A, TOGETHER WITH OTHER LAND NOT INSURED HEREIN, IS NOT ASSESSED FOR REAL ESTATE TAX PURPOSES UNDER THE FOLLOWING PERMANENT INDEX NUMBER: 04-14-305-001-0000.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

ENDIPG

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ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 **- 008392913 - D2**

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

SUBDIVISION ENDORSEMENT

THE COMPANY HEREBY INSURES THE **INSURED** AGAINST **LOSS OR** DAMAGE **WHICH THE INSURED** SHALL SUSTAIN **BY REASON OF ANY INACCURACY** IN THE FOLLOWING **ASSURANCE** :

THAT THE LEGAL DESCIPTION OF THE LAND INSURED HEREUNDER IS THAT OF A LOT IN A SUBDIVISION WHICH WAS VALIDLY CREATED IN CONFORMANCE WITH THE STATUTES OF THE STATE OF ILLINOIS, AND THAT ANY SUBSEQUENT CONVEYANCE OF THE LAND WILL NOT REQUIRE FURTHER SUBDIVISION OF THE LAND.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

ENDIPG

JR

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 **- 008392913** - D2

ISSUED BY

CHICAGO **TITLE** INSURANCE COMPANY

ALTA **ENDORSEMENT** FORM **13.1-06**

1. **AS USED IN** THIS ENDORSEMENT, THESE TERMS SHALL MEAN **THE FOLLOWING:**

2. A. "EVICTED" **OR** "EVICTION": (A) THE LAWFUL **DEPRIVATION, IN** WHOLE OR **IN** PART, **OF THE** RIGHT **OF POSSESSION INSURED BY** THIS POLICY, CONTRARY **TO** THE TERMS **OF THE** LEASE **OR (B)** THE LAWFUL PREVENTION **OF THE** USE **OF** THE **LAND** OR THE **TENANT** LEASEHOLD IMPROVEMENTS **FOR THE PURPOSES** PERMITTED **BY** THE LEASE, IN EITHER **CASE,** AS A **RESULT OF** A MATTER COVERED **BY** THIS **POLICY**.

B. "**LEASE**": THE LEASE **AGREEMENT** DESCRIBED IN SCHEDULE **A.**

C. "LEASEHOLD ESTATE": THE RIGHT OF POSSESSION FOR THE LEASE TERM.

D. "LEASE TERM": THE DURATION OF THE LEASEHOLD ESTATE, INCLUDING ANY RENEWAL OR EXTENDED TERM IF A VALID OPTION TO RENEW OR EXTEND IS CONTAINED IN THE LEASE.

E. "PERSONAL PROPERTY": CHATTELS LOCATED ON THE LAND AND PROPERTY THAT, BECAUSE OF THEIR CHARACTER AND MANNER OF AFFIXATION TO THE LAND, CAN BE SEVERED FROM THE LAND WITHOUT CAUSING APPRECIABLE DAMAGE TO THEMSELVES OR TO THE LAND TO WHICH THEY ARE AFFIXED.

F.

G.

H. "REMAINING LEASE TERM": THE PORTION OF THE LEASE TERM REMAINING AFTER THE INSURED HAS BEEN EVICTED AS A RESULT OF A MATTER COVERED BY THIS POLICY.

"TENANT": THE TENANT UNDER THE LEASE AND, AFTER ACQUISITION OF ALL OR ANY PART OF THE TITLE IN ACCORDANCE WITH THE PROVISIONS OF SECTION 2 OF THE CONDITIONS OF THIS POLICY, THE INSURED CLAIMANT.

"TENANT LEASEHOLD IMPROVEMENTS": THOSE IMPROVEMENTS, INCLUDING LANDSCAPING, REQUIRED OR PERMITTED TO BE BUILT ON THE LAND BY THE LEASE THAT HAVE BEEN BUILT AT THE INSURED'S EXPENSE OR IN WHICH THE INSURED HAS AN INTEREST GREATER THAN THE RIGHT TO POSSESSION DURING THE LEASE TERM.

VALUATION OF ESTATE OR INTEREST INSURED

IF IN COMPUTING LOSS OR DAMAGE IT BECOMES NECESSARY TO VALUE THE TITLE AS THE RESULT OF A COVERED MATTER THAT RESULTS IN AN EVICTION OF THE TENANT, THEN THAT VALUE SHALL CONSIST OF THE VALUE FOR THE REMAINING LEASE TERM OF THE LEASEHOLD ESTATE AND ANY TENANT LEASEHOLD IMPROVEMENTS EXISTING ON THE DATE OF THE EVICTION. THE INSURED CLAIMANT SHALL HAVE THE RIGHT TO HAVE THE LEASEHOLD ESTATE AND THE TENANT LEASEHOLD IMPROVEMENTS VALUED EITHER AS A WHOLE OR SEPARATELY. IN EITHER EVENT, THIS DETERMINATION OF VALUE SHALL TAKE INTO ACCOUNT RENT NO LONGER

(CONTINUED)

ENDCONT

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: **1401-008392913** - D2

ISSUED **BY**

CHICAGO TITLE **INSURANCE** COMPANY

REQUIRED TO BE PAID FOR THE REMAINING LEASE TERM.

3. ADDITIONAL ITEMS **OF LOSS COVERED BY** THIS **ENDORSEMENT**

IF **THE INSURED** ACQUIRES ALL **OR ANY PART OF THE** TITLE IN **ACCORDANCE WITH** THE **PROVISIONS OF SECTION** 2 **OF THE CONDITIONS** OF **THIS POLICY AND** THEREAFTER IS EVICTED**,** THE **FOLLOWING** ITEMS **OF LOSS**, IF APPLICABLE, SHALL **BE** INCLUDED IN **COMPUTING LOSS OR** DAMAGE **INCURRED BY** THE **INSURED, BUT NOT TO** THE EXTENT **THAT** THE **SAME** ARE **INCLUDED** IN **THE VALUATION** OF **THE** TITLE.

A.

B.

C.

D.

E.

F.

G.

THE REASONABLE **COST OF REMOVING AND** RELOCATING **ANY** PERSONAL PROPERTY THAT THE **INSURED** HAS **THE** RIGHT **TO** REMOVE **AND** RELOCATE, SITUATED **ON** THE **LAND AT** THE TIME **OF** EVICTION, THE **COST** OF **TRANSPORTATION OF** THAT PERSONAL PROPERTY **FOR THE** INITIAL ONE **HUNDRED** MILES **INCURRED IN CONNECTION** WITH THE RELOCATION, **AND** THE REASONABLE **COST OF** REPAIRING THE

PERSONAL PROPERTY DAMAGED BY REASON OF THE REMOVAL AND RELOCATION.

RENT OR DAMAGES FOR USE AND OCCUPANCY OF THE LAND PRIOR TO THE EVICTION THAT THE INSURED AS OWNER OF THE LEASEHOLD ESTATE MAY BE OBLIGATED TO PAY TO ANY PERSON HAVING PARAMOUNT TITLE TO THAT OF THE LESSOR IN THE LEASE.

THE AMOUNT OF RENT THAT, BY THE TERMS OF THE LEASE, THE INSURED MUST CONTINUE TO PAY TO THE LESSOR AFTER EVICTION WITH RESPECT TO THE PORTION OF THE LEASEHOLD ESTATE AND TENANT LEASEHOLD IMPROVEMENTS FROM WHICH THE INSURED HAS BEEN EVICTED.

THE FAIR MARKET VALUE, AT THE TIME OF THE EVICTION, OF THE ESTATE OR INTEREST OF THE INSURED IN ANY LEASE OR SUBLEASE MADE BY TENANT AS LESSOR OF ALL OR PART OF THE LEASEHOLD ESTATE OR THE TENANT LEASEHOLD IMPROVEMENTS.

DAMAGES THAT THE INSURED IS OBLIGATED TO PAY TO LESSEES OR SUBLESSEES ON ACCOUNT OF THE BREACH OF ANY LEASE OR SUBLEASE MADE BY THE TENANT AS LESSOR OF ALL OR PART OF THE LEASEHOLD ESTATE OR THE TENANT LEASEHOLD IMPROVEMENTS CAUSED BY THE EVICTION.

REASONABLE COSTS INCURRED BY THE INSURED TO SECURE A REPLACEMENT LEASEHOLD EQUIVALENT TO THE LEASEHOLD ESTATE.

IF TENANT LEASEHOLD IMPROVEMENTS ARE NOT SUBSTANTIALLY COMPLETED AT THE TIME OF EVICTION, THE ACTUAL COST INCURRED BY THE INSURED, LESS THE SALVAGE VALUE, FOR THE TENANT LEASEHOLD IMPROVEMENTS UP TO THE TIME OF EVICTION. THOSE COSTS INCLUDE COSTS INCURRED TO OBTAIN LAND USE, ZONING, BUILDING AND OCCUPANCY PERMITS, ARCHITECTURAL AND ENGINEERING FEES, CONSTRUCTION MANAGEMENT FEES, COSTS OF ENVIRONMENTAL TESTING AND REVIEWS, AND LANDSCAPING COSTS.

THIS ENDORSEMENT IS ISSUED AS PART OF THE POLICY. EXCEPT AS IT EXPRESSLY STATES, IT DOES NOT (1) MODIFY ANY OF THE TERMS AND PROVISIONS OF THE POLICY, (11) MODIFY

ENDCONT

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

ANY PRIOR ENDORSEMENTS, (111) EXTEND THE DATE OF POLICY, OR (IV) INCREASE THE AMOUNT OF INSURANCE. TO THE EXTENT A PROVISION OF THE POLICY OR A PREVIOUS ENDORSEMENT IS INCONSISTENT WITH AN EXPRESS PROVISION OF THIS ENDORSEMENT, THIS ENDORSEMENT CONTROLS. OTHERWISE, THIS ENDORSEMENT IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS OF THE POLICY AND OF ANY PRIOR ENDORSEMENTS.

CHICAGO **TITLE** INSURANCE COMPANY

LOAN POLICY (2006)

SCHEDULE A

DATE OF POLICY: **PRO FORMA POLICY**

AMOUNT **OF** INSURANCE: **$8,490,000.00**

LOAN NUMBER:

YOUR LOAN REFERENCE: EC2C

1. NAME OF INSURED:

AMALGAMATED BANK OF CHICAGO, AS TRUSTEE

POLICY NUMBER: 1401 - 008392913 - D2

2. THE ESTATE OR INTEREST IN THE LAND THAT IS ENCUMBERED BY THE INSURED MORTGAGE IS:

FEE SIMPLE, UNLESS OTHERWISE NOTED.

3.

TITLE IS VESTED IN:

SOCIETY OF THE DIVINE WORD, A NOT-FOR-PROFIT CORPORATION ILLINOIS

PRO FORMA TITLE FINDING: NORTH SHORE ICE ARENA, LLC, AN ILLINOIS LIMITED LIABILITY COMPANY.

THE INSURED MORTGAGE, AND ITS ASSIGNMENTS, IF ANY, ARE DESCRIBED AS FOLLOWS:

MORTGAGE DATED AND RECORDED

MADE BY TO TO SECURE A NOTE FOR

4.

$~.

AS DOCUMENT

LPA06 6/07 DGG

THIS POLICY VALID ONLY IF SCHEDULE B IS ATTACHED

JR

01/22/08

09:47:11

CHICAGO TITLE INSURANCE COMPANY

LOAN POLICY (2006)

SCHEDULE A (CONTINUED)

POLICY NUMBER: 1401 - 008392913 - D2

5.

THE LAND REFERRED TO IN THIS POLICY IS DESCRIBED AS FOLLOWS:

THE ESTATE OR INTEREST IN THE LAND DESCRIBED BELOW AND COVERED HEREIN IS: THE LEASEHOLD ESTATE (SAID LEASEHOLD ESTATE BEING DEFINED IN PARAGRAPH 1.c. OF THE ALTA LEASEHOLD ENDORSEMENT(S) ATTACHED HERETO), CREATED BY THE INSTRUMENT HEREIN REFERRED TO AS THE GROUND LEASE, EXECUTED BY: CHICAGO TITLE LAND TRUST COMPANY, AS TRUSTEE UNDER TRUST AGREEMENT DATED DECEMBER 1, 2007 AND KNOWN AS TRUST NUMBER 1114334, AS LESSOR, AND NORTH SHORE ICE ARENA, LLC AN ILLINOIS LIMITED LIABILITY COMPANY, AS LESSEE, DATED ~, A SHORT FORM AND MEMORANDUM OF GROUND LEASE WAS RECORDED - AS DOCUMENT WHICH GROUND LEASE DEMISES THE FOLLOWING DESCRIBED LAND FOR A TERM OF YEARS BEGINNING AND ENDING –

PARCEL 1:

THAT PART OF LOT EC-2 IN TECHNY PARCELS EC-1 AND EC-2, BEING A SUBDIVISION OF PART OF THE WEST HALF OF SECTION 14, AND PART OF THE SOUTHEAST QUARTER OF SECTION 15, ALL IN TOWNSHIP 42 NORTH, RANGE 12, EAST OF THE THIRD PRINCIPAL MERIDIAN, ACCORDING TO THE PLAT THEREOF RECORDED FERUARY 27, 2004 AS DOCUMENT NUMBER 0405844049, DESCRIBED AS FOLLOWS: COMMENCING AT THE SOUTHWEST CORNER OF SAID LOT EC-2; THENCE NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING FIVE COURSES AND DISTANCES: (1) NORTH 41 DEGREES 07 MINUTES 39 SECONDS WEST, 115.77

FEET; (2) NORTH 89 DEGREES 55 MINUTES 05 SECONDS WEST, 211.02 FEET; (3) NORTH 26 DEGREES 54 MINUTES 49 SECONDS WEST, 102.88 FEET; (4) NORTH 37 DEGREES 42 MINUTES 01 SECONDS EAST, 173.60 FEET (5) THENCE NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 687.48 FEET FOR THE PLACE OF BEGINNING; THENCE CONTINUING NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLWOING THREE COURSES AND DISTANCES: (1) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 36.58 FEET; (2) NORTH 42 DEGREES 59 MINUTES 46 SECONDS WEST, 402.42 FEET; (3) THENCE NORTH 81 DEGREES 38 MINUTES 35 SECONDS WEST, 102.67 FEET; THENCE NORTH 56 DEGREES 07 MINUTES 43 SECONDS EAST, 594.75 FEET TO THE EASTERLY LINE OF SAID LOT EC-2, SAID LINE ALSO BEING THE WESTERLY LINE OF HERETOFORE DEDICATED FOUNDERS DRIVE; THENCE SOUTHERLY ALONG THE EASTERLY LINE OF SAID LOT EC-2 THE FOLLOWING TWO COURSES AND DISTANCES (1) ALONG AN ARC OF A CURVE CONCAVE TO THE EAST AND NONTANGENT TO THE LAST DESCRIBED LINE, HAVING A RADIUS OF 780.00 FEET, HAVING A CHORD BEARING OF SOUTH 22 DEGREES 31 MINUTES 41 SECONDS EAST, 401.93 FEET TO A POINT OF REVERSE CURVATURE; (2) THENCE ALONG AN ARC OF A CURVE CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 2540.00 FEET HAVING A CHORD BEARING OF SOUTH 36 DEGREES 00 MINUTES 59 SECONDS EAST, 112.94 FEET; THENCE SOUTH 56 DEGREES 07 MINUTES 43 SECONDS WEST ALONG A LINE NONTANGENT TO THE LAST DESCRIBED CURVE, 385.88 FEET TO THE PLACE OF BEGINNING, IN COOK COUNTY, ILLINOIS

THIS POLICY VALID ONLY IF SCHEDULE B IS ATTACHED

JR

01/22/08

09:47:11

CHICAGO TITLE INSURANCE COMPANY

LOAN POLICY (2006)

SCHEDULE B - PART I

POLICY NUMBER: 1401 - 008392913 - D2

EXCEPTIONS FROM COVERAGE

EXCEPT AS PROVIDED IN SCHEDULE B - PART II, THIS POLICY DOES NOT INSURE AGAINST LOSS OR DAMAGE (AND THE COMPANY WILL NOT PAY COSTS, ATTORNEYS' FEES OR EXPENSES) THAT ARISE BY REASON OF:

A

1.

1.

TAXES FOR THE YEAR(S) 2006 AND 2007 2007

TAXES ARE NOT YET DUE OR PAYABLE.

1A.

NOTE: 2006 FIRST INSTALLMENT WAS DUE MARCH 01, 2007 NOTE: 2006 FINAL INSTALLMENT IS DUE DECEMBER 3, 2007 PERM TAX#

PCL YEAR 1ST INST STAT 2ND INST STAT 04-14-305-001-0000 1 OF 1

2006 NOT BILLED

NOT BILLED

THIS TAX NUMBER AFFECTS PARCEL IN QUESTION AND OTHER PROPERTY.

PERM TAX#

3A

04-14-305-001-0000 PCL 1 OF 1

VOLUME 00

THE GENERAL TAXES AS SHOWN BELOW ARE MARKED EXEMPT ON THE

** *

COLLECTOR'S WARRANTS.

YEAR (S): 2005 AND PRIOR

UNLESS SATISFACTORY EVIDENCE IS SUBMITTED TO SUBSTANTIATE SAID EXEMPTION OUR POLICY, IF AND WHEN ISSUED, WILL BE SUBJECT TO SAID TAXES.

J 2. ORDINANCE ESTABLISHING PROPERTY SHARES FOR INDIRECT BENEFITS PROVIDED BY THE LEE-GRANT WATER FEEDER MAIN ORDINANCE NUMBER 80-35 RECORDED SEPTEMBER 17, 1980 AS DOCUMENT 25587903.

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3. ANNEXATION AGREEMENT DATED DECEMBER 15, 1988 AND RECORDED DECEMBER 16, 1988 AS DOCUMENT 88581079 MADE BY AND BETWEEN SOCIETY OF THE DIVINE WORD, A NOT-FOR-PROFIT CORPORATION ILLINOIS AND VILLAGE OF NORTHBROOK.

FIRST AMENDMENT RECORDED MARCH 27, 1991 AS DOCUMENT 91137573. SECOND AMENDMENT RECORDED NOVEMBER 10, 1993 AS DOCUMENT 93916442. THIRD AMENDMENT RECORDED NOVEMBER 12, 1999 AS DOCUMENT NUMBER 09067534. FOURTH AMENDMENT RECORDED MAY 31, 2005 AS DOCUMENT NUMBER 0515103085. FIFTH AMENDMENT RECORDED AUGUST 18, 2005 AS DOCUMENT NUMBER 0523032093. SIXTH AMENDMENT RECORDED MARCH 8, 2006 AS DOCUMENT NUMBER 0606718036. SEVENTH AMENDMENT RECORDED DECEMBER 15, 2006 0634939087.

4. EASEMENT IN FAVOR OF THE VILLAGE OF NORTHBROOK, AND ITS/THEIR RESPECTIVE SUCCESSORS AND ASSIGNS, TO INSTALL, OPERATE AND MAINTAIN ALL EQUIPMENT NECESSARY FOR THE PURPOSE OF SERVING THE LAND AND OTHER PROPERTY, TOGETHER

CHICAGO TITLE INSURANCE COMPANY

LOAN POLICY (2006)

SCHEDULE B - PART I (CONTINUED)

POLICY NUMBER: 1401 - 008392913 - D2

WITH THE RIGHT OF ACCESS TO SAID EQUIPMENT, AND THE PROVISIONS RELATING THERETO CONTAINED IN THE PLAT RECORDED/FILED AS DOCUMENT NO. 0405844049, AFFECTING THE LAND AS FOLLOWS:

A 25 FOOT STRIP AFFECTING THE EAST AND NORTHEAST PORTION OF LOT EC-2;

5. PORTIONS OF THE PROPERTY LIE WITHIN THE LIMITS OF THE FLOOD HAZARD AREA, AS DISCLOSED BY FINAL PLAT OF SUBDIVISION OF TECHNY PARCELS EC-1 AND EC-2 RECORDED AS DOCUMENT NUMBER 0405844049.

N 6. DECLARATION ESTABLISHING COVENANTS, CONDITIONS, RESTRICTIONS, EASEMENTS AND RIGHTS FOR REAL ESTATE PARCELS NC-1, EC-1, EC-2, AND SE-1 WITHIN THE TECHNY PROPERTY, NORTHBROOK, ILLINOIS AND PROVIDING FOR THE TECHNY PROPERTY ASSOCIATION RECORDED NOVEMBER 12, 1999 AS DOCUMENT NUMBER 09067537. AMENDED AND RESTATED DECLARATION ESTABLISHING COVENANTS, CONDITIONS, RESTRICTIONS, EASEMENTS AND RIGHTS FOR REAL ESTATE PARCELS NC-1, EC-1, EC-2, AND SE-1 WITHIN THE TECHNY PROPERTY, NORTHBROOK, ILLINOIS AND PROVIDING FOR THE TECHNY PROPERTY ASSOCIATION RECORDED SEPTEMBER 19, 2005 AS DOCUMENT NUMBER 0526227126.

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7. THE DEVELOPER HAS RESERVED THE RIGHT TO ADD PROPERTY DEFINED AS PARCEL W-2 TO THE DELCARATION ESTABLISHING COVENANTS, CONDITIONS, RESTRICTIONS, EASEMENTS AND RIGHTS FOR REAL ESTATE PARCELS NC-1, EC-1, EC-2 AND SE-1 WITHIN TECHNY PROPERTY, NORTHBOOK ILLINOIS, AND PROVIDING FOR THE TECHNY PROPERTY ASSOCIATION RECORDED NOVEMBER 12, 1999 AS DOCUMENT NUMBER 09067537, AND IN THE EVENT OF SUCH ADDITION, TO REALLOCATE PERCENTAGE INTERESTS IN THE COMMON ELEMENTS.

8. PERMANENT AND PERPETUAL EASEMENT IS HEREBY GRANTED TO THE VILLAGE OF NORTHBROOK, ITS SUCCESSORS AND ASSIGNS, TO TEST, INSPECT, REPAIR, REPLACE, ALTER, REMOVE OR ABANDON IN PLACE WATER MAIN, STORM SEWER, SANITARY SEWER, PUBLIC SIDEWALK, STREET LIGHTING AND DRAINAGE, UPON, UNDER, ALONG AND ACROSS THE AREA DESIGNATED "VILLAGE UTILITY EASEMENT, PUBLIC UTILITIES EASEMENT ON THE SUBDIVISION, ALSO GRANTED HEREWITH IS THE RIGHT TO CUT, TRIM OR REMOVE TREES, BUSHES ETC. AS SHOWN ON PLAT OF FINAL PLAT OF SUBDIVISION OF TECHNY PARCELS EC-1 AND EC-2 RECORDED AS DOCUMENT 0405844049.

W 9. TERMS AND PROVISIONS OF SUBDIVISION AND DEVELOPMENT AGREEMENT BY, BETWEEN AND AMONG THE VILLAGE OF NORTHBROOK AND SOCIETY OF THE DIVINE WORD (TECHNY REAL ESTATE PARCELS EC-1 AND EC-2) DATED JANUARY 13, 2004 AND RECORDED FEBRUARY 27, 2004 AS DOCUMENT NUMBER 0405844048.

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10. TERMS, PROVISIONS AND CONDITIONS CONTAINED IN THE TRANSPORTATION FACILITY AND PROGRAMS AGREEMENT RECORDED JULY 7, 1989 AS DOCUMENT NUMBER 89309243, MADE BY AND AMONG THE VILLAGE OF NORTHBROOK AND SOCIETY OF THE DIVINE WORD AND RUBLOFF INC.

FIRST AMENDED AND RESTATED TRANSPORTATION FACILITIES AND PROGRAMS AGREEMENT DATED JULY 13, 1999 AND RECORDED NOVEMBER 12, 1999 AS DOCUMENT NUMBER 09067536.

PROFORMA DELETE **EXCEPTIONS**

POLICY NUMBER: 1401 - 008392913 - D2

FOR THE **PURPOSES OF** THIS **PRO FORMA POLICY**, THE **FOLLOWING** EXCEPTIONS ARE HEREBY **DELETED**:

1. **EXISTING UNRECORDED** LEASES **AND** ALL **RIGHTS THEREUNDER OF THE** LESSEES **AND OF ANY** PERSON **OR PARTY** CLAIMING **BY**, **THROUGH OR UNDER THE LESSEES**.

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2. **WE SHOULD BE FURNISHED** A **STATEMENT THAT** THERE IS **NO PROPERTY MANAGER EMPLOYED TO MANAGE** THE **LAND**, **OR**, **IN** THE ALTERNATIVE, A FINAL LIEN WAIVER FROM **ANY SUCH PROPERTY MANAGER.**

IF

3. **WE SHOULD BE FURNISHED** A CERTIFIED **COPY OF** THE DIRECTORS' RESOLUTIONS AUTHORIZING THE CONVEYANCE **OR MORTGAGE** TO **BE INSURED**. SAID **RESOLUTIONS** SHOULD **EVIDENCE** THE **AUTHORITY OF** THE **PERSONS EXECUTING** THE CONVEYANCE **OR MORTGAGE**. THEY **DO NOT**, **A** CERTIFIED **COPY** OF THE CORPORATE **BY-**LAWS **ALSO** SHOULD **BE** FURNISHED.

IF **SAID** CONVEYANCE **OR MORTGAGE COMPRISES** ALL OR SUBSTANTIALLY ALL THE **CORPORATION'S ASSETS**, WE **ALSO SHOULD** BE FURNISHED A CERTIFIED **COPY** OF **THE SHAREHOLDER/**MEMBER **RESOLUTIONS** WHICH **AUTHORIZE** SAID **CONVEYANCE OR MORTGAGE**. THIS **COMMITMENT IS** SUBJECT **TO SUCH** FURTHER **EXCEPTIONS**, IF **ANY**, **AS MAY BE** DEEMED **NECESSARY** AFTER OUR REVIEW OF THESE MATERIALS.

4. WE **SHOULD BE FURNISHED** A **CURRENT** CERTIFICATE **OF GOOD STANDING** FROM **THE** ILLINOIS SECRETARY **OF** STATE **FOR** SOCIETY **OF THE** DIVINE **WORD**, A **CORPORATION** OF ILLINOIS.

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5. AN EXECUTED COPY OF THE LEASE CREATING THE TITLE TO THE LEASEHOLD ESTATE DESCRIBED IN SCHEDULE A SHOULD BE FURNISHED (TO BE RETAINED BY THE COMPANY), AND THIS COMMITMENT IS SUBJECT TO SUCH FURTHER EXCEPTIONS, IF ANY, AS MAY THEN BE DEEMED NECESSARY.

6. THE LEASE CREATING THE LEASEHOLD ESTATE DESCRIBED IN SCHEDULE A HEREOF, OR A PROPER MEMORANDUM THEREOF, SHOULD BE RECORDED, AND THIS COMMITMENT IS SUBJECT TO SUCH FURTHER EXCEPTIONS, IF ANY, AS MAY THEN BE DEEMED NECESSARY.

IF A MEMORANDUM OF LEASE IS TO BE RECORDED, SAID MEMORANDUM SHOULD CONTAIN THE NAMES OF THE PARTIES THERETO, A DESCRIPTION OF THE DEMISED PREMISES, THE COMMENCEMENT AND TERMINATION DATES OF SAID LEASE AND WORDS OF ACTUAL DEMISE.

7. A WRITTEN STATEMENT SHOULD BE FURNISHED FROM THE OWNER OF THE FEE IN THE LAND, STATING THAT THERE HAS BEEN NO DEFAULT IN THE PAYMENT OF THE RENTS; THAT THERE ARE NO DEFAULTS UNDER ANY OTHER COVENANTS OF THE LEASE TO BE PERFORMED BY THE LESSEE; AND THAT THERE ARE NO CHARGES WHICH THE OWNERS CLAIM TO BE ADDITIONAL LIENS UPON THE LEASEHOLD ESTATE.

H 8. UPON ANY CONVEYANCE OR MORTGAGE OF THE LAND, A STATEMENT FROM THE SECRETARY OF THE BOARD OF MANAGERS OF THE TOWNHOME, HOMEOWNERS, OR OTHER ASSOCIATION, THAT THERE ARE NO UNPAID ASSESSMENT LIENS EXISTING BY REASON OF THE NONPAYMENT OF ASSESSMENTS SHOULD BE FURNISHED.

NOTE:

THE STATEMENT SHOULD COVER THE RECORDING DATE OF THE MORTGAGE OR, IF

TITLE **IS TO BE** CONVEYED, THE **RECORDING** DATE **OF** THE **DEED**, WHICHEVER DATE IS LATER.

09:47:13

CHICAGO **TITLE** INSURANCE COMPANY

POLICY SIGNATURE PAGE

POLICY NUMBER: 1401 **- 008392913** - D2

THIS **POLICY** SHALL **NOT BE** VALID OR **BINDING** UNTIL **SIGNED BY AN** AUTHORIZED SIGNATORY.

CHICAGO TITLE INSURANCE COMPANY

BY

AUTHORIZED SIGNATORY

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

LOCATION ENDORSEMENT 5 SURVEY

THE COMPANY HEREBY INSURES THE INSURED AGAINST LOSS OR DAMAGE WHICH THE INSURED SHALL SUSTAIN IN THE EVENT THAT:

THE PLAT OF SURVEY MADE BY V3 ENGINEERS, NUMBER 8904EC2.NSIA, DATED OCTOBER 25, 2007, DOES NOT ACCURATELY DEPICT THE LOCATIONS OF THE EXTERIOR BOUNDARIES OF THE LAND DESCRIBED IN SCHEDULE A, DOES NOT SHOW THE PROPER DIMENSIONS OF SAID BOUNDARIES, AND DOES NOT CORRECTLY REFLECT THE ABSENCE AS OF THE DATE OF SAID SURVEY OF ANY ENCROACHMENTS OR EASEMENTS NOT OTHERWISE EXPRESSLY SET FORTH IN SCHEDULE B.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

ENDIPG

JR

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - **008392913** - D2

ISSUED BY

CHICAGO **TITLE** INSURANCE COMPANY

LOCATION ENDORSEMENT 6 - CONTIGUITY **TO** STREET

THE **COMPANY** HEREBY **INSURES THE INSURED** AGAINST **LOSS OR** DAMAGE WHICH THE INSURED SHALL **SUSTAIN** IN **THE EVENT THAT**, **AT** DATE OF **POLICY:**

THE **LAND DESCRIBED IN SCHEDULE** A **IS NOT CONTIGUOUS** TO A PHYSICALLY OPEN **AND PUBLICALLY DEDICATED** STREET **KNOWN AS** FOUNDERS DRIVE,

THIS **ENDORSEMENT** IS **MADE** A PART **OF** THE POLICY **AND IS** SUBJECT **TO** ALL **OF THE** TERMS **AND PROVISIONS**

THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

ENDIPG

JR

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

UTILITY FACILITY ENDORSEMENT

THE COMPANY HEREBY INSURES THE INSURED AGAINST LOSS OR DAMAGE WHICH SAID INSURED SHALL SUSTAIN BY REASON OF ANY INACCURACIES IN THE FOLLOWING ASSURANCE:

1. WATER, GAS, ELECTRIC, TELEPHONE, STORM SEWER AND SANITARY SEWER SERVICES ARE AVAILABLE TO THE LAND DESCRIBED IN SCHEDULE A EITHER OVER, UNDER OR UPON PUBLIC RIGHTS OF WAY DIRECTLY ADJACENT TO SAID LAND OR OVER, UNDER OR UPON AN EASEMENT (NOT TERMINABLE BY THE GRANTOR THEREOF OR BY HIS HEIRS, PERSONAL REPRESENTATIVES, SUCCESSORS OR ASSIGNS) FOR THE BENEFIT OF SAID LAND THAT CONNECTS TO PUBLIC RIGHTS OF WAY.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO. EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

ENDIPG

JR

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 **- 008392913** - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

This Endorsement has been **approved for** Pro-**Forma** purposes only, and will be considered for issuance upon **our** receipt and review **of** the following: intended **use** of the property **in** Techny Overlay District

ALTA **ENDORSEMENT** FORM **3-06**

1.
THE COMPANY INSURES **AGAINST LOSS OR** DAMAGE SUSTAINED **BY** THE **INSURED IN** THE **EVENT THAT**, **AT DATE OF** POLICY,

2.

A. **ACCORDING TO** APPLICABLE **ZONING ORDINANCES AND AMENDMENTS**, THE **LAND IS NOT** CLASSIFIED **ZONE** }

B.

THE **FOLLOWING** USE **OR** USES ARE **NOT** ALLOWED UNDER THAT CLASSIFICATION:

THERE SHALL **BE NO** LIABILITY UNDER THIS **ENDORSEMENT** BASED **ON**

A. **LACK OF COMPLIANCE** WITH **ANY CONDITIONS**, **RESTRICTIONS, OR** REQUIREMENTS **CONTAINED** IN THE **ZONING** ORDINANCES **AND** AMENDMENTS, **INCLUDING BUT NOT** LIMITED **TO** THE FAILURE **TO SECURE** NECESSARY **CONSENTS OR AUTHORIZATIONS** AS A **PREREQUISITE TO** THE **USE OR** USES. **THIS PARAGRAPH** 2.A. **DOES NOT MODIFY OR** LIMIT THE COVERAGE **PROVIDED IN COVERED RISK** 5.

B. THE INVALIDITY OF **THE ZONING** ORDINANCES **AND** AMENDMENTS **UNTIL** AFTER A FINAL DECREE OF A **COURT OF COMPETENT JURISDICTION ADJUDICATING THE** INVALIDITY, THE EFFECT **OF** WHICH IS TO **PROHIBIT** THE **USE OR USES**.

C. THE **REFUSAL OF ANY** PERSON **TO** PURCHASE, LEASE **OR LEND MONEY ON** THE ESTATE **OR INTEREST COVERED BY** THIS **POLICY**.

A306 11/06 DGG

THIS ENDORSEMENT IS ISSUED AS PART OF THE POLICY, EXCEPT AS IT EXPRESSLY STATES, IT DOES NOT (1) MODIFY ANY OF THE TERMS AND PROVISIONS OF THE POLICY, (11) MODIFY ANY PRIOR ENDORSEMENTS, (111) EXTEND THE DATE OF POLICY, OR (IV) INCREASE THE AMOUNT OF INSURANCE. TO THE EXTENT A PROVISION OF THE POLICY OR A PREVIOUS ENDORSEMENT IS INCONSISTENT WITH AN EXPRESS PROVISION OF THIS ENDORSEMENT, THIS ENDORSEMENT CONTROLS. OTHERWISE, THIS ENDORSEMENT IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS OF THE POLICY AND OF ANY PRIOR ENDORSEMENTS.

JR

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

P.I.N. ENDORSEMENT 2

THE COMPANY HEREBY INSURES THE INSURED **AGAINST** LOSS OR DAMAGE **WHICH** THE INSURED SHALL SUSTAIN IN **THE EVENT** THAT, AT DATE **OF** POLICY:

(1) THE LAND **DESCRIBED** IN SCHEDULE A **DOES NOT CONSTITUTE** A **PORTION OF** A **SINGLE** PARCEL **FOR** REAL ESTATE **TAX** PURPOSES; **AND**

(2) THE **LAND DESCRIBED** IN SCHEDULE A, TOGETHER WITH OTHER **LAND NOT INSURED** HEREIN, **IS NOT ASSESSED FOR** REAL ESTATE TAX **PURPOSES** UNDER THE **FOLLOWING** PERMANENT INDEX NUMBER: **04-14-305-001-0000**.

THIS **ENDORSEMENT IS MADE** A **PART** OF THE **POLICY AND** IS SUBJECT **TO** ALL OF THE TERMS **AND PROVISIONS** THEREOF **AND OF** ANY **PRIOR** ENDORSEMENTS THERETO. **EXCEPT TO THE** EXTENT EXPRESSLY STATED, **IT** NEITHER MODIFIES **ANY** OF THE TERMS **AND PROVISIONS OF** THE **POLICY AND ANY** PRIOR **ENDORSEMENTS**, **NOR** DOES IT **EXTEND** THE EFFECTIVE DATE OF **THE POLICY AND ANY** PRIOR ENDORSEMENTS, **NOR** DOES IT **INCREASE** THE FACE **AMOUNT** THEREOF.

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

SUBDIVISION ENDORSEMENT

THE COMPANY HEREBY INSURES THE INSURED AGAINST LOSS OR DAMAGE WHICH THE INSURED SHALL SUSTAIN BY REASON OF ANY INACCURACY IN THE FOLLOWING ASSURANCE:

THAT THE LEGAL DESCIPTION OF THE LAND INSURED HEREUNDER IS THAT OF A LOT IN A SUBDIVISION WHICH WAS VALIDLY CREATED IN CONFORMANCE WITH THE STATUTES OF THE STATE OF ILLINOIS, AND THAT ANY SUBSEQUENT CONVEYANCE OF THE LAND WILL NOT REQUIRE FURTHER SUBDIVISION OF THE LAND.

THIS ENDORSEMENT IS MADE A PART OF THE POLICY AND IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS THEREOF AND OF ANY PRIOR ENDORSEMENTS THERETO EXCEPT TO THE EXTENT EXPRESSLY STATED, IT NEITHER MODIFIES ANY OF THE TERMS AND PROVISIONS OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT EXTEND THE EFFECTIVE DATE OF THE POLICY AND ANY PRIOR ENDORSEMENTS, NOR DOES IT INCREASE THE FACE AMOUNT THEREOF.

ENDIPG

JR

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF
POLICY NUMBER: **1401-008392913 - D2**

ISSUED **BY**

CHICAGO **TITLE INSURANCE** COMPANY

ALTA **ENDORSEMENT** FORM 13.1-06

1. AS **USED** IN THIS ENDORSEMENT, THESE TERMS SHALL MEAN THE FOLLOWING:

2.

A. "EVICTED" OR "EVICTION": (A) THE LAWFUL DEPRIVATION, IN WHOLE OR IN

PART, OF THE RIGHT OF POSSESSION INSURED BY THIS POLICY, CONTRARY TO THE TERMS OF THE LEASE OR (B) THE LAWFUL PREVENTION OF THE USE OF THE LAND OR THE TENANT LEASEHOLD IMPROVEMENTS FOR THE PURPOSES PERMITTED BY THE LEASE, IN EITHER CASE, AS A RESULT OF A MATTER COVERED BY THIS POLICY.

B. "LEASE": THE LEASE AGREEMENT DESCRIBED IN SCHEDULE A.

C. "LEASEHOLD ESTATE": THE RIGHT OF POSSESSION FOR THE LEASE TERM.

D. "LEASE TERM": THE DURATION OF THE LEASEHOLD ESTATE, INCLUDING ANY RENEWAL OR EXTENDED TERM IF A VALID OPTION TO RENEW OR EXTEND IS CONTAINED IN THE LEASE.

E. "PERSONAL PROPERTY": CHATTELS LOCATED ON THE LAND AND PROPERTY THAT, BECAUSE OF THEIR CHARACTER AND MANNER OF AFFIXATION TO THE LAND, CAN BE SEVERED FROM THE LAND WITHOUT CAUSING APPRECIABLE DAMAGE TO THEMSELVES OR TO THE LAND TO WHICH THEY ARE AFFIXED.

F. "REMAINING LEASE TERM": THE PORTION OF THE LEASE TERM REMAINING AFTER THE INSURED HAS BEEN EVICTED AS A RESULT OF A MATTER COVERED BY THIS POLICY.

G.

H.

"TENANT": THE TENANT UNDER THE LEASE AND, AFTER ACQUISITION OF ALL OR ANY PART OF THE TITLE IN ACCORDANCE WITH THE PROVISIONS OF SECTION 2 OF THE CONDITIONS OF THIS POLICY, THE INSURED CLAIMANT.

"TENANT LEASEHOLD IMPROVEMENTS": THOSE IMPROVEMENTS, INCLUDING LANDSCAPING, REQUIRED OR PERMITTED TO BE BUILT ON THE LAND BY THE LEASE THAT HAVE BEEN BUILT AT THE INSURED'S EXPENSE OR IN WHICH THE INSURED HAS AN INTEREST GREATER THAN THE RIGHT TO POSSESSION DURING THE LEASE TERM.

VALUATION OF ESTATE OR INTEREST INSURED

IF IN COMPUTING LOSS OR DAMAGE IT BECOMES NECESSARY TO VALUE THE TITLE AS THE RESULT OF A COVERED MATTER THAT RESULTS IN AN EVICTION OF THE TENANT, THEN THAT VALUE SHALL CONSIST OF THE VALUE FOR THE REMAINING LEASE TERM OF THE LEASEHOLD ESTATE AND ANY TENANT LEASEHOLD IMPROVEMENTS EXISTING ON THE DATE OF THE EVICTION. THE INSURED CLAIMANT SHALL HAVE THE RIGHT TO HAVE THE LEASEHOLD ESTATE AND THE TENANT LEASEHOLD IMPROVEMENTS VALUED EITHER AS A WHOLE OR SEPARATELY. IN EITHER EVENT, THIS DETERMINATION OF VALUE SHALL TAKE INTO ACCOUNT RENT NO LONGER

(CONTINUED)

ENDCONT

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

REQUIRED TO BE PAID FOR THE REMAINING LEASE TERM.

3. ADDITIONAL ITEMS OF LOSS COVERED BY THIS ENDORSEMENT

IF THE INSURED ACQUIRES ALL OR ANY PART OF THE TITLE IN ACCORDANCE WITH THE PROVISIONS OF SECTION 2 OF THE CONDITIONS OF THIS POLICY AND THEREAFTER IS EVICTED, THE FOLLOWING ITEMS OF LOSS, IF APPLICABLE, SHALL BE INCLUDED IN COMPUTING LOSS OR DAMAGE INCURRED BY THE INSURED, BUT NOT TO THE EXTENT THAT THE SAME ARE INCLUDED IN THE VALUATION OF THE TITLE.

A.

B.

C.

D.

E.

F.

G.

THE REASONABLE COST OF REMOVING AND RELOCATING ANY PERSONAL PROPERTY THAT THE INSURED HAS THE RIGHT TO REMOVE AND RELOCATE, SITUATED ON THE LAND AT THE TIME OF EVICTION, THE COST OF TRANSPORTATION OF THAT PERSONAL PROPERTY FOR THE INITIAL ONE HUNDRED

MILES INCURRED IN CONNECTION WITH THE RELOCATION, AND THE REASONABLE COST OF REPAIRING THE PERSONAL PROPERTY DAMAGED BY REASON OF THE REMOVAL AND RELOCATION.

RENT OR DAMAGES FOR USE AND OCCUPANCY OF THE LAND PRIOR TO THE EVICTION THAT THE INSURED AS OWNER OF THE LEASEHOLD ESTATE MAY BE OBLIGATED TO PAY TO ANY PERSON HAVING PARAMOUNT TITLE TO THAT OF THE LESSOR IN THE LEASE.

THE AMOUNT OF RENT THAT, BY THE TERMS OF THE LEASE, THE INSURED MUST CONTINUE TO PAY TO THE LESSOR AFTER EVICTION WITH RESPECT TO THE PORTION OF THE LEASEHOLD ESTATE AND TENANT LEASEHOLD IMPROVEMENTS FROM WHICH THE INSURED HAS BEEN EVICTED.

THE FAIR MARKET VALUE, AT THE TIME OF THE EVICTION, OF THE ESTATE OR INTEREST OF THE INSURED IN ANY LEASE OR SUBLEASE MADE BY TENANT AS LESSOR OF ALL OR PART OF THE LEASEHOLD ESTATE OR THE TENANT LEASEHOLD IMPROVEMENTS.

DAMAGES THAT THE INSURED IS OBLIGATED TO PAY TO LESSEES OR SUBLESSEES ON ACCOUNT OF THE BREACH OF ANY LEASE OR SUBLEASE MADE BY THE TENANT AS LESSOR OF ALL OR PART OF THE LEASEHOLD ESTATE OR THE TENANT LEASEHOLD IMPROVEMENTS CAUSED BY THE EVICTION.

REASONABLE COSTS INCURRED BY THE INSURED TO SECURE A REPLACEMENT LEASEHOLD EQUIVALENT TO THE LEASEHOLD ESTATE,

IF TENANT LEASEHOLD IMPROVEMENTS ARE NOT SUBSTANTIALLY COMPLETED AT THE TIME OF EVICTION, THE ACTUAL COST INCURRED BY THE INSURED, LESS THE SALVAGE VALUE, FOR THE TENANT LEASEHOLD IMPROVEMENTS UP TO THE TIME OF EVICTION. THOSE COSTS INCLUDE COSTS INCURRED TO OBTAIN LAND USE, ZONING, BUILDING AND OCCUPANCY PERMITS, ARCHITECTURAL AND ENGINEERING FEES, CONSTRUCTION MANAGEMENT FEES, COSTS OF ENVIRONMENTAL TESTING AND REVIEWS, AND LANDSCAPING COSTS.

THIS ENDORSEMENT IS ISSUED AS PART OF THE POLICY. EXCEPT AS IT EXPRESSLY STATES, IT DOES NOT (1) MODIFY ANY OF THE TERMS AND PROVISIONS OF THE POLICY, (11) MODIFY

ENDORSEMENT

ATTACHED TO AND FORMING A PART OF

POLICY NUMBER: 1401 - 008392913 - D2

ISSUED BY

CHICAGO TITLE INSURANCE COMPANY

ANY PRIOR ENDORSEMENTS, (111) EXTEND THE DATE OF POLICY, OR (IV) INCREASE THE AMOUNT OF INSURANCE. TO THE EXTENT A PROVISION OF THE POLICY OR A PREVIOUS ENDORSEMENT IS INCONSISTENT WITH AN EXPRESS PROVISION OF THIS ENDORSEMENT, THIS ENDORSEMENT CONTROLS. OTHERWISE, THIS ENDORSEMENT IS SUBJECT TO ALL OF THE TERMS AND PROVISIONS OF THE POLICY AND OF ANY PRIOR ENDORSEMENTS.

ENDCONT